

Bond

6



Indian-Non Judicial Stamp
Haryana Government



Date : 07/05/2018

Certificate No. G0G2018E663



Stamp Duty Paid : ₹ 101

GRN No. 34987798



(Rs. Only)

Penalty : ₹ 0

(Rs. Zero Only)

Deponent

Name : Ats Real Worth pvt ltd

H.No/Floor : 16

Sector/Ward : 135

Landmark : Na

City/Village : Noida

District : G b nagar

State : Up

Phone : 0



Purpose : AGREEMENT to be submitted at Others

The authenticity of this document can be verified by scanning this QrCode Through smart phone or on the website <https://egrashry.nic.in>

TRIPARTITE AGREEMENT

This Tripartite Agreement (hereinafter referred to as "**Agreement**") is made at the date and the place as mentioned in Schedule I between:

By And Between

"**Borrower**" means one or more individual(s), a sole proprietary firm or Hindu undivided family, a partnership firm or a limited company or limited liability partnership, trust, society etc. whose name(s) and Address(s) is/are stated in the **Schedule I** executing this Agreement (hereinafter referred to as the "**Borrower**"/"**Buyer**" which expression unless repugnant to the context shall include his/their heirs, executors, administrators, representatives, successors and assigns) of the **First Part**;

And

Builder, a company incorporated and registered under the Companies Act, 1956/2013, whose name and registered office address is mentioned in the **Schedule I** hereto (hereinafter referred to as the "**Builder**"/"**Developer**", which expression shall, unless it be repugnant to the subject or context thereof, include its successors and assigns, of the **Second Part**;

And

PNB Housing Finance Limited incorporated under the Companies Act, 1956 having its registered office at 9th Floor, Antriksh Bhawan, Kasturba Gandhi Marg, New Delhi 110001, (hereinafter referred to as the "**the Lender**") which expression shall, unless it be repugnant to the subject or context thereof, include its successors and assigns, of the **Third Part**.

Ashish Srivastava

Bond

7



Indian-Non Judicial Stamp
Haryana Government



Date : 07/05/2018

Certificate No. G0G2018E662



Stamp Duty Paid : ₹ 101

GRN No. 34987798



(Rs. Only)

Penalty : ₹ 0

(Rs. Zero Only)

Deponent

Name : Ats Real Worth pvt ltd

H.No/Floor : 16

Sector/Ward : 135

Landmark : Na

City/Village : Noida

District : G b nagar

State : Up

Phone : 0



Purpose : AGREEMENT to be submitted at Others

The authenticity of this document can be verified by scanning this QrCode Through smart phone or on the website <https://egrashry.nic.in>

The Borrower, Builder and PNBHFL shall be referred to individually as "Party" and collectively as "Parties"

Any references to the singular and plural number shall be deemed to include the plural or singular number respectively and words using the masculine gender only shall include the feminine gender and vice versa, as the case may be.

This Agreement shall form an integral part of the Loan Documents. Capitalised terms used herein shall have the same meaning as ascribed to them under this Agreement. All capitalized terms used but not defined herein, shall have the same meaning as assigned to them in the General Terms and Conditions ("GTC")*. The terms of this Agreement shall be read in conjunction with the terms of the GTC.

WHEREAS:

- As part of its business activity, the Builder has developed/in process of development of a project mentioned in **Schedule I** (hereinafter referred to as the "**Project**").
- The Borrower have represented that the Builder is of their choice and that they have satisfied themselves with regard to integrity, capability for quality construction of the Builder and the Builder's ability for timely completion and on time delivery of the Project.

[Signature]

[Signature]

Ashish Srivastava

[Signature]

Bond



**Indian-Non Judicial Stamp
Haryana Government**



Date : 07/05/2018

Certificate No. G0G2018E661



Stamp Duty Paid : ₹ 101

GRN No. 34987798



(Rs. Only)

Penalty : ₹ 0

(Rs. Zero Only)

Deponent

Name : Ats Real Worth pvt ltd

H.No/Floor : 16

Sector/Ward : 135

Landmark : Na

City/Village : Noida

District : G b nagar

State : Up

Phone : 0



Purpose : AGREEMENT to be submitted at Others

The authenticity of this document can be verified by scanning this QRCode Through smart phone or on the website <https://egrashry.nic.in>

- C. The Borrower desire to purchase a property details whereof are mentioned under **Schedule I** costing for an amount as mentioned in **Schedule I** from the Builder which envisages allotment to applicants/Borrower of such property (hereinafter referred to as the "**Property**", more specifically mentioned in the Schedule) and payment by the applicants/Borrower of the cost of construction and purchase of land and common facilities therefore to the Builder in instalments.
- D. The Borrower are short of finance for purchasing the Property hence in order to make up their finance for the purchase approached PNBHFL for grant of Housing Loan. The Borrower under the provisions of the housing loan scheme framed by the PNBHFL have applied to PNBHFL for a loan for the purchase of the Property and PNBHFL has agreed to grant a loan for an amount as mentioned under **Schedule I** to the Borrower (hereinafter referred to as the "**Loan**") subject to the terms and conditions applicable to the Loan for Purchase of Property. The Borrower have represented that they have not availed any loan from anywhere.
- E. The Builder hereby offers interest subvention for the Loan extended by PNBHFL to the Borrower to purchase the Property which the Borrower accepts. The Builder liability for payment of interest on the loan amount disbursed/to be disbursed by PNBHFL will be for initial period as mentioned in **Schedule I**.

PNBHFL has considered the said request with a clear understanding and an irrevocable undertaking by the Borrower that subsequent to the disbursements as requested by the Borrower, there would be no repayment default for any reason whatsoever including but not limited to any concern/issues by and between the Borrower and the Builder/Developer.

Ashish Srivastava

9

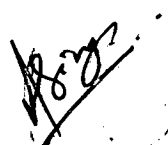
- F. The Borrower have represented, and such representation being a continuing representation, that Borrower's obligation to repay the Loan shall be a distinct and independent obligation more particularly independent of any issues/concern/ dispute of whatsoever nature between the Borrower and Builder;

NOW THEREFORE, IN CONSIDERTAION OF MUTUAL COVENANTS HEREIN THE PARTIES HERETO AGREE AS FOLLOWS:

1. That on application for grant of Loan of the Borrower and on receipt of intimation from the Builder that the Property has been allotted to the Borrower, PNBHFL has sanctioned the Loan for purchase of Property costing for an amount as mentioned in **Schedule I** to the Borrower according to its rules, but the actual payment in instalments will be made by PNBHFL directly to the Builder as per the norms of PNBHFL. Any amount towards purchase price in excess of the "Loan for purchase of Property" sanctioned by PNBHFL will be paid by the Borrower directly to the Builder as per sale agreement between the Builder and the Borrower and original money receipts will be submitted to PNBHFL.
2. The Builder shall maintain a separate account for the Borrower and adjust the amounts disbursed by PNBHFL against the cost of particular category of Property/Unit applied for by the Borrower.
3. That the Builder undertakes to pay only interest to PNBHFL for the Loan disbursed to the Borrower as per applicable provisions of the MOU for the Subvention Period between Builder and PNBHFL.
4. That the Builder shall not hand over the actual and physical possession of the said Property/Unit to the Borrower without prior written intimation to PNBHFL and before execution and registration of the sale deed/lease deed. The original sale deed/lease deed shall be submitted to PNBHFL directly by the Builder to be kept by PNBHFL towards security for the said Loan.
5. That irrespective of the stage of construction of the Project and irrespective of the date of handing over the possession of the Property to the Borrower by the Builder, the Borrower shall be liable to pay to PNBHFL regularly each month, the Pre-EMIs/EMIs as laid down in the Disbursement Letter signed by and between PNBHFL and the Borrower. The Borrower shall execute an indemnity and such other documents as may be required by PNBHFL in favour of PNBHFL in this regard.
6. The Pre-EMI interest (PEMII) payable under the Loan Documents shall be serviced and borne by the Builder / Developer during the Subvention Period as mentioned in **Schedule I**. The said PEMII shall be paid by the Developer of the Loan amount Disbursed as per the MOU.
7. Without prejudice to the remedies which PNBHFL may have against the Developer, in the event the Developer fails to honour its obligation (as stated above), the same shall constitute an Event of Default under the Loan Documents and the Borrower shall be liable to pay the entire Outstanding Amount along with the amount due by way of PEMII.



Ashish Srivastava





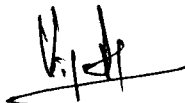
10

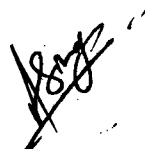
8. If the Borrower desire to withdraw and/or in case of death of Borrower and/or if Borrower fail to pay the balance amount representing the difference between the Loan sanctioned by PNBHFL and the actual purchase price of the Property, the entire amount advanced by the PNBHFL directly to the builder will be refunded by the Builder to PNBHFL forthwith.
9. That in the event of the death of the Borrower, the Builder may permit their legal heirs to have continued interest in the Property if they immediately deposit with the Builder the amount refunded to PNBHFL as provided herein and undertake to pay the Builder all such further sum or sums as would have been payable by the Borrower to the Builder.
10. Further, the Builder, in the event of default of repayment of Loan by the Borrower, shall on written intimation/instructions of PNBHFL cancel the allotment of the Property of the Borrower and refund, the entire amount advanced/funded by PNBHFL directly to PNBHFL only after deduction of earnest money other charges as mentioned in Buyers Agreement/Agreement to sell/Allotment letter and the Builder shall have right to recover/forfeit the earnest money other charges as mentioned above.
11. Notwithstanding anything contained herein this Agreement, cancellation of allotment by the Builder and/or surrender/withdrawal by the Borrower from the scheme for any reasons whatsoever, the Borrower shall continue to make payments of EMI's and/or Pre-EMI's as agreed in the Disbursement Letter entered into with PNBHFL till the amount referred above is refunded by the Builder failing which PNBHFL shall have full rights to initiate legal action against the Borrower..
12. That PNBHFL shall have full rights to recover the difference amount between outstanding amount (including interest and other charges) standing in the Loan account of the Borrower and the amount refunded by the Builder after deduction of Earnest money and other charges as mentioned in Buyers Agreement/Agreement to sell/Allotment letter.
13. **(Applicable only in case the Builder has taken a project loan)** The Builder hereby declares that they have taken a project loan from "**the Project Lender**" details whereof are mentioned under **Schedule I** on this Project. The Builder undertake that they will provide necessary NOC from **the Project Lender** before disbursement of loan and thereafter the Property/Unit will be and remain free from all encumbrance(s) charge or liability of any kind whatsoever.

OR

- 13 (A) **(Applicable only in case the Builder has not taken any project loan on date)** The Builder assures that at present the said Property as well as the said building and the land appurtenant thereto are not subject to any encumbrance, charge or liability of any kind whatsoever and that the entire Property is free and marketable. Also the original Lease Deed/Sale Deed executed, is in the possession of the Builder. In case Builder raises project funding from any financial institution in future, the Builder shall give prior written intimation to PNBHFL in this regard and forthwith provide NOC with respect to all the Properties funded by PNBHFL in the Project including the abovementioned

Ashish Subastava







//

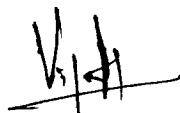
Property from that Financial institution in favour of PNBHFL acknowledging the first charge/lien/mortgage of PNBHFL. Further the Builder shall not permit any other person to occupy the said unit/ Property without prior written permission of PNBHFL.

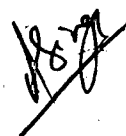
14. The Builder also confirms that it has taken necessary permissions /approvals/ sanctions for construction of the said Property/building from all the concerned competent authorities and the construction of the building as well as the Property/unit is in accordance with the approved plans and the Property is meant for residential/commercial purposes as per the sanction. Further, PNBHFL shall have the right to seek the progress report of the work of construction of the said Property/Unit and the Builder shall provide the same whenever demanded by PNBHFL.
15. Notwithstanding anything to the contrary stated hereinabove, the Borrower has verified the title of the Builder with respect to the Project and has further satisfied himself with respect to all the requisite statutory approvals and sanctions pertaining to the Project.
16. The Builder has given its consent that PNBHFL shall have a lien on the Property. That the Borrower have to furnish the Property as security for loan to PNBHFL and create mortgage in favour of the PNBHFL as and when the sale deed/lease deed of the Property is executed it will be sent directly to PNBHFL.
17. The Builder will not transfer the said Property to any other member or other person without obtaining the previous written consent/NOC from PNBHFL.
18. Without prejudice to the rights available to PNBHFL under Clause 5 and 7 herein, in the event of default by the buyer/s or Mortgagor/s or Borrower, if PNBHFL exercise its right to enforce the security by sale / transfer to any third party including transferring to itself, the Builder would accept the purchaser/s of the Property / PNBHFL as a the buyer (as the case may be), on such purchaser (s) / transferee complying with the necessary formalities which are required by the Builder to become a transferee/ purchaser / allottee/ owner of the Property and shall clear all outstanding dues and delay interest before such enforce the security by sale.

Or

- 18A. **(Applicable where option under Clause 18 is not available)** Without prejudice to the rights available to PNBHFL under Clause 6 and 8 herein, in the event of default by the buyer/s or Mortgagor/s or Borrower (where PNBHFL has provided a loan facility in excess of the amount stated under the original buyer's agreement / builder buyer agreement / sale agreement executed by and between the Builder and the original allottee of the Property) and where PNBHFL exercise its right to enforce the security by sale / transfer to any third party including transferring to itself, the Builder would accept the purchaser/s of the Property / PNBHFL as a the buyer (as the case may be), on such purchaser (s) / transferee complying with the necessary formalities which are required by the Builder to become a transferee/ purchaser / allottee / owner of the Property and shall clear all outstanding dues and delay interest before such enforce the security by sale.
19. That the Borrower hereby agrees and undertakes that if the Builder proposes to handover the possession of the Property or intimate about the application of Occupation Certificate (OC) with the competent Authority, for the said property to the Borrower

Ashish Sultana





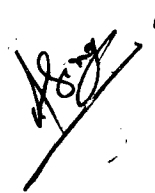


12

before the Subvention Period and if due to any reason the Borrower avoids to take possession of the Property despite reasonable written notice to him/her than this shall be considered as an event of default on the part of the Borrower. In such situation, the Builder upon written intimation from PNBHFL shall cancel the allotment of the Borrower and refund the amount disbursed by PNBHFL directly to Builder, after deduction of earnest money and other charges as mentioned in Buyers Agreement, Agreement to sell, Allotment letter etc.

20. Notwithstanding anything contained or entered into between the Builder and the Borrower in any agreement or document or any clause contained therein and not forming part of this Agreement, this Agreement shall have an overriding effect.
21. That the Builder agrees and undertakes that subject to the provisions of this Agreement, PNBHFL may monitor and periodically evaluate the Project compliance with the agreed milestones and performance levels. Without prejudice to the generality of the foregoing, PNBHFL reserves its right as following:-
 - a.) From the date of this Agreement, PNBHFL may through its representative inspect the project Site on a monthly basis and may regularly inspect log recording progress of the Project:
22. The Borrower assume full responsibility for and unconditionally agree to indemnify, defend and hold harmless PNBHFL from and against any and all claims, actions, liabilities, losses, damages, costs and expenses (including but not limited to attorney's fees) arising from failure of Borrower to perform any of their respective obligations under this and/or any other Agreement with PNBHFL and/or from the negligence or misconduct of the Borrower and the Builder.
23. The courts at New Delhi, Delhi shall have exclusive jurisdiction over any matter/dispute arising out of this Agreement.
24. It is understood that this Agreement does not constitute any party as the agent or legal representative of the other party(s) for any purpose whatsoever, and that no party is authorized to assume or create any obligation or responsibility, express or implied, on behalf of or in the name of the other party(s) or to bind the other party(s) in any manner or thing whatsoever.

*General Terms & Conditions ("GTC") are registered with the office of Sub-Registrar at Karnal, Haryana on December 04, 2014 as Document No. 9326 under Book I, Vol. No. 534 at Page No.82.



Ashish Swastang

13

IN WITNESS WHEREOF THE PARTIES above named have hereto set their hands on the dates specified here-in above in each case.

Witness
Signature
Name
Address
Occupation

(Signature of the Borrower/Mortgagor/s)

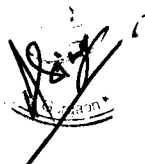
Witness
Signature
Name
Address
Occupation

(Signature on behalf of the Builder)
Name
Designation
Seal :

Ashish Srivastava

Witness
Signature
Name
Address
Occupation

(Signature on behalf of the
PNB Housing Finance Limited)



V. P. A.

Agarwal

14

SCHEDULE I

1. **Date:** 20-10-2018
2. **Place:** Noida
3. **Details of the Property:** Unit No – 3051, 05th Floor, Tower No. 03
4. **Total consideration of the Property:** Rs. 74,05,709/- and Rs. 9,31,060/- (which is the tax applicable on the above amount) totaling to Rs. 83,36,769/- (Rupees Eighty Three Lac Thirty Six Thousand Seven Hundred Sixty Nine Only) ("Total Price")
5. **Loan Amount:** Rs. 90,00,000/- (Rupees Ninety Lac Only)
6. **"Borrower":**

**Mr. Vijyant Agarwal S/o Mr. Braham Prakash Agarwal
&
Mrs. Vineeta Agarwal W/o Mr. Vijyant Agarwal
R/o House No.-07, Type-05, Netaji Subhas Institute of Technology,
Sector-03, Dwarka, New Delhi-110078,**

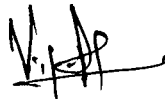
"Builder":

**M/s ATS Realworth Private Limited.
Registered office at 711/92, Deepali, Nehru Place, New Delhi-110019
&
Corporate office at ATS Tower, Plot No. 16, Sector-135, NOIDA**

7. **Project:**

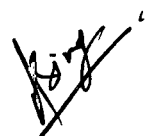
"ATS GRANDSTAND"
8. **Subvention Period:**

The obligation of developer is to pay the pre-EMI interest amount during subvention period (36 Months from The Date of first Disbursement or Offer of Possession Whichever is earlier) on behalf of the Borrower which was otherwise payable by the Borrower.



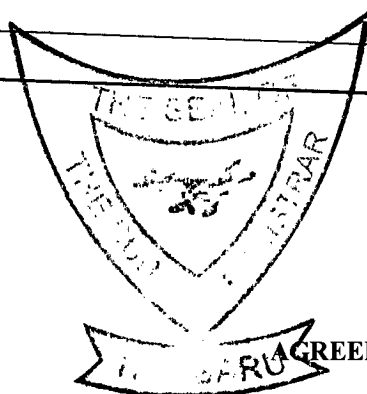






★ 15 -

Bond	 Indian-Non Judicial Stamp Haryana Government 	Date :22/10/2018
Certificate No. GFV2018J79	 	Stamp Duty Paid : ₹ 2000 (Rs. Only)
GRN No. 41656299	Deponent	Penalty : ₹ 0 (Rs. Zero Only)
Name: Ats Real Worth pvt ltd	Sector/Ward : 135	Landmark : Noida
H.No/Floor : 16	District : G b nagar	State : Up
City/Village : Noida		
Phone : 0		
Purpose : BBA to be submitted at Gurugram		



3400
25/10/18

This Agreement for Sale ("Agreement") is executed on this 18th day of October, 2018

By and Between

M/s ATS Realworth Private Limited (CIN No. U70109DL2012PTC243081), a company incorporated under the provisions of the Companies Act, [1956 or 2013, as the case may be], having its registered office 711/92, Deepali, Nehru Place, New Delhi – 110019 and its corporate office at ATS Tower, Plot No.16, Sector-135, NOIDA (PAN- AALCA0065F), represented by its authorized signatory Ashish Srivastava (Aadhaar No. 753318566519) authorized vide board resolution dated _____ hereinafter referred to as the "Promoter" (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include its successor-in-interest, and permitted assigns).

AND

Mr. Vijyant Agarwal (Aadhaar No. 5864 8142 4294 & PAN: AGTPA2826P) S/o Mr. Braham Prakash Agarwal aged about 48 Years & Mrs. Vineeta Agarwal (Aadhaar No. 8421 4046 2965 & PAN: AGTPA2827N) W/o Mr. Vijyant Agarwal aged about 48 Years R/o House No.-07, Type-05, Netaji Subhas Institute of Technology Sector-03, Dwarka, New Delhi-110078, hereinafter called the "Allottee" (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include his/her heirs, executors, administrators, successors-in-interest and permitted assigns).

Ashish Srivastava
PROMOTER

Vijyant
ALLOTTEE

Vineeta
CO-ALLOTTEE

प्रलेख न:3400

दिनांक:25-10-2018

डीड संबंधी विवरण

डीड का नाम AGREEMENT

तहसील/सब-तहसील हरसरु

गांव/शहर हुंडा के सैक्टर

धन संबंधी विवरण

राशि 720000 रुपये

स्टाम्प ड्यूटी की राशि 2000 रुपये

स्टाम्प नं : GFV2018J79

स्टाम्प की राशि 2000 रुपये

रजिस्ट्रेशन फीस की राशि 5000 रुपये

पेस्टिंग शुल्क 3 रुपये

Drafted By: Yogesh Kumar ADV

Service Charge:200

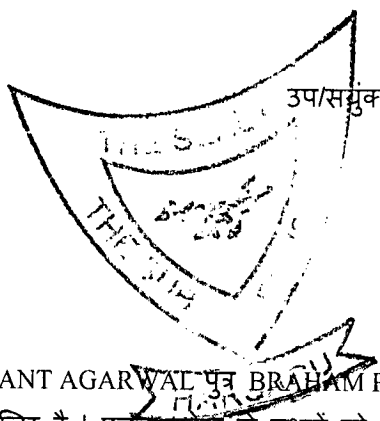
यह प्रलेख आज दिनांक 25-10-2018 दिन गुरुवार समय 1:44:00 PM बजे श्री/श्रीमती /कुमारी

MS ATS REALWORTH PVT LTD thru ASHISH SRIVASTAVA OTHER निवास द्वारा पंजीकरण हेतु प्रस्तुत किया गया ।

Ashish Srivastava

हस्ताक्षर प्रस्तुतकर्ता

MS ATS REALWORTH PVT LTD



उप/संयुक्त पंजीयन अधिकारी (हरसरु)

उपरोक्त पेशकर्ता व श्री/श्रीमती /कुमारी VIJYANT AGARWAL पुत्र BRAHAM PRAKASH AGARWAL VINEETA AGARWAL पत्नी VIJYANT AGARWAL हाजिर है । प्रतुत प्रलेख के तथ्यों को दोनों पक्षों

ने सुनकर तथा समझकर स्वीकार किया । दोनों पक्षों की पहचान श्री/श्रीमती /कुमारी YOGESH KUMAR पिता --- निवासी ADV GGM व श्री/श्रीमती /कुमारी LAXMAN KUMAR पिता KAMAL KUMAR निवासी 539 SEC 53 GGM ने की ।

साक्षी नं:1 को हम नम्बरदार /अधिवक्ता के रूप में जानते हैं तथा वह साक्षी नं:2 की पहचान करता है ।

दिनांक 25-10-2018

उप/संयुक्त पंजीयन अधिकारी (हरसरु)

17

The Promoter and Allottee shall hereinafter collectively be referred to as the "Parties" and individually as a "Party".

DEFINITIONS:

For the purpose of this Agreement, unless the context otherwise requires,-

- (a) "Act" means the Real Estate (Regulation and Development) Act, 2016 (16 of 2016);
- (b) "Government" means the Government of the State of Haryana;
- (c) "Rules" means the Real Estate (Regulation and Development) Rules, 2017 for the State of Haryana;
- (d) "Section" means a section of the Act.

WHEREAS:

- A M/s Hasta Infrastructure Private Limited (hereinafter referred as the "Owner") is the absolute and lawful owner of the lands measuring 11.5875 acres situated in Sector 99A, Gurugram (in revenue estate of village Gopalpur), Haryana, India more particularly detailed in **Schedule A** hereof ("Said Land"). The Owner and the Promoter have entered into Development Agreement dated 15th April, 2013 registered as document no. 1314 on 15th April, 2013 at the office of the Sub-Registrar, Gurugram;
- B The Said Land is earmarked for the purpose of a building residential project, comprising multistoried apartment and the said project shall be known as '**ATS Grandstand Phase-I**' ("Project");
- C The Promoter is fully competent to enter into this Agreement and all the legal formalities with respect to the right, title and interest of the Promoter regarding the Said Land on which Project is to be constructed have been complied with;
- D The Director General, Town and Country Planning has granted the approval/ sanction to develop the Project vide approval dated 03.06.2013 bearing license no. 37 of 2013.
- E The Promoter has obtained approval on the layout plan / building plan/ or any requisite approval for the Project as the case may be, from Directorate of Town and Country Planning Haryana. The Promoter agrees and undertakes that it shall not make any changes to these approved plans except as set forth in Para M, Para N and Para O below and in compliance with section 14 of the Act/ any other laws of the State as applicable;
- F The Promoter has registered the Project under the provisions of the Act with the Haryana Real Estate Regulatory Authority at Panchkula on 02/01/2018 under registration No. 06 of 2018 dated 02-01-2018
- G The Allottee had applied for residential apartment in the Project vide Booking Registration No. **27** dated **14-03-2018** and has been allotted Apartment No. **3051** having carpet area of **93.92** Square meter equivalent to **1011** square feet, Type **D**, on **05th** Floor in Tower No. **03** ("Building") along with exclusive right to use **1(One)** Car Parking(s) (if applicable) in the Project ("Car Parking"), as permissible under the applicable laws and pro rata share in the common areas ("Common Areas") as defined under Rule 2(1)(f) of Rules, 2017 and any other applicable laws/ judgments of the State (hereinafter referred to as the "Apartment" more particularly described in Schedule B and the floor plan of the apartment is annexed hereto and marked as Schedule C). It is hereby informed that the saleable/super area of the Apartment is **144** Square meter, equivalent to **1550** square feet;
- H The Allottee has inspected the site where the Project is proposed to be constructed along with the ownership records and other related documents and hereby acknowledges that the Promoter has readily provided all information and clarifications as required. The Allottee has relied solely on his personal

Ashish Sivastava

Q

PROMOTER

17/1

ALLOTTEE

Signature

CO-ALLOTTEE

18

Reg. No.

Reg. Year

Book No.

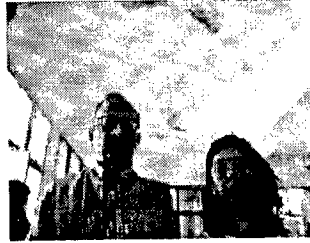
3400

2018-2019

1



पेशकर्ता



दावेदार



गवाह

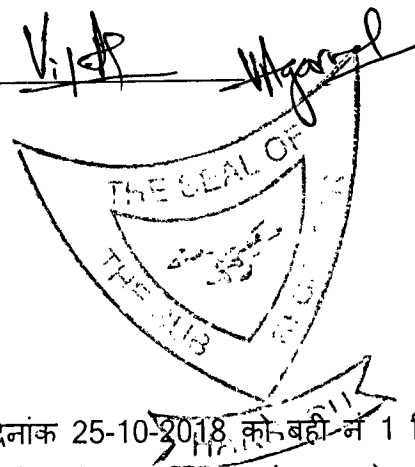
उप/सयुंक्त पंजीयन अधिकारी

पेशकर्ता :- thru ASHISH SRIVASTAVA OTHER MS ATS REALWORTH PVT LTD Ashish Srivastava

दावेदार :- VIJYANT AGARWAL VINEETA AGARWAL Vijant Vineeta

गवाह 1 :- YOGESH KUMAR Yogesh

गवाह 2 :- LAXMAN KUMAR Laxman

प्रमाण पत्र

प्रमाणित किया जाता है कि यह प्रलेख क्रमांक 3400 आज दिनांक 25-10-2018 को बही नं 1 जिल्द नं 10 के पृष्ठ नं 160 पर किया गया तथा इसकी एक प्रति अतिरिक्त बही संख्या 1 जिल्द नं 294 के पृष्ठ संख्या 100 से 101 पर चिपकाई गयी। यह भी प्रमाणित किया जाता है कि इस दस्तावेज के प्रस्तुतकर्ता और गवाहों ने अपने हस्ताक्षर/निशान अंगूठा मेरे सामने किये हैं।

दिनांक 25-10-2018

Signature
उप/सयुंक्त पंजीयन अधिकारी(हरसरू)

19

judgment in deciding to enter into this Agreement and to purchase the Said Apartment. Further, the Allottee is satisfied about the title of the Promoter related to the Project and is also content with the right, title and interest of the Promoter to sell the Said Apartment and receive the Total Price

- I. The Parties have gone through all the terms and conditions of this Agreement and understood the mutual rights and obligations detailed herein;
- J. The Project was launched prior to the Act coming into force. Certain details and disclosures with regard to sale and other acts / deeds relating to the Project are provided in **Schedule D** herein. *[Any further Project specific additional disclosures / details can be provided here].*
- K. The Parties hereby confirm that they are signing this Agreement with full knowledge of all the laws, rules, regulations, notifications, etc., applicable in the State and related to the Project;
- L. The Parties, relying on the confirmations, representations and assurances of each other, do faithfully abide by all the terms, conditions and stipulations contained in this Agreement and all applicable laws, are now willing to enter into this Agreement on the terms and conditions appearing hereinafter;
- M. The Allottee(s) acknowledges, agrees, confirms and declares that the Allottee(s) has agreed to enter into this Agreement after being fully aware that the Promoter intends to add an additional land parcel ad-measuring 1.08125 acre and an additional FAR originated from the Transit Oriented Development policy or otherwise to the Said Land in future, within One (1) years of the execution of this Agreement. The Allottee(s) understands that the Project shall be unviable for the Promoter and the Promoter shall suffer huge losses, in the event such additional land or FAR is not added to the Said Land. The additional land and the additional FAR that may be added by the Promoter to the Said Land are detailed, described and demarcated in Schedule I hereto. The Allottee(s) hereby provides its express consent to the Promoter to add the said additional land parcel and the additional FAR to the Said Land and to carry out all such amendments and modifications to the Said Land / Project including relating to the design and lay-out and in relevant construction and development approvals as may be required by the Promoter to add the additional land and FAR to the Said Land, and to utilize the same and develop / construct the same as part of the Project as per the design that the Promoter deems fit and appropriate. The Allottee(s) also undertakes and agrees to sign all such deeds, documents and writing as the Promoter may require the Allottee(s) to sign to in this regard.
- N. The Allottee(s) agrees and understands that the Promoter shall have the absolute right to modify the building plans or submit new building plans and make additional construction (anywhere in Said Land, including the tower in which the unit is housed) by way of an increase in the number of floors, change in lay-out, movement of the footprint of the towers or otherwise, whether on account of increase in the FAR or better utilization of the Said Land in accordance with the Promoter's design for the Project or pursuant to the grant of additional licenses for additional lands as stated in Para M above or for any other reason, to the extent permissible by the relevant Governmental Authority at any time before or after the completion of the Project or filing the Declaration Deed therefore, and within One (1) years of the execution of this Agreement. In the event of any changes made by the Promoter to the apartment or building plans / maps, the Allottee(s) agrees and acknowledges that the Allottee(s) shall not have any right to raise any objection/dispute in this regard against the Promoter.
- O. The Allottee(s) has clearly understood that for the better implementation of the Project and the Promoter's design and plan thereto, there could be changes, alterations, modifications in the layout plan / building plans / floor plan, areas and/or drawings, layout, elevations, features, specifications, height, dimensions, finishing, enhancements etc. that are necessitated during or after the construction of the Apartment or as may be required by any statutory authority(ies) or otherwise within One (1) years of the execution of this Agreement and the Allottee(s) undertakes to raise no objection thereto.

Ashish Srivastava

PROMOTER

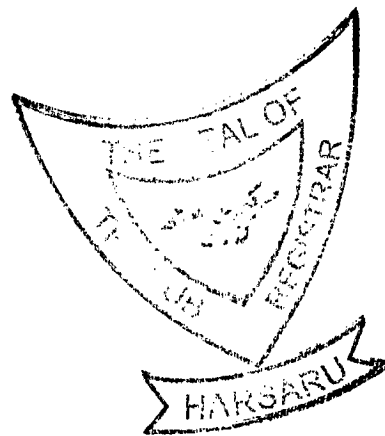
V. V. V. V.

ALLOTTEE

H. H. H.

CO-ALLOTTEE

20.



- P. In accordance with the terms and conditions of this Agreement and as mutually agreed upon by and between the Parties, the Promoter hereby agrees to sell and the Allottee(s) hereby agrees to purchase the Apartment for Residential usage with exclusive right to use car parking's as specified in Para G.

NOW THEREFORE, in consideration of the mutual representations, covenants, assurances, promises and agreements contained herein and other good and valuable consideration, the Parties agree as follows:

1. TERMS:

- 1.1 Subject to the terms and conditions as detailed in this Agreement, the Promoter agrees to sell to the Allottee and the Allottee hereby agrees to purchase the Apartment for Residential usage alongwith usage right of parking (if applicable) as specified in Para G.
- 1.2 The Total Price for Apartment based on carpet area along with usage right of parking (if applicable) is **Rs. 74,05,709/- and Rs. 9,31,060/- (which is the tax applicable on the above amount) totaling to Rs. 83,36,769/- (Rupees Eighty Three Lac Thirty Six Thousand Seven Hundred Sixty Nine Only ("Total Price"))**.

The Break Up of the Total Price is enumerated in **Schedule E**:

Tower No.3 Apartment No. 3051	Particulars	Amount	GST		Total
			12% (Post adjustment of abatement)	18%	
Type D	Basic Sale Price (Inclusive of 1 Parking)	6699459	803935	-	7503394
	Power Backup	100000		18000	118000
Floor 05 th	EDC/IDC Charges	581250		104625	685875
	Electricity Meter Charges	25000		4500	29500
Parking 1(One)	Total	7405709	803935	127125	8336769
Total price (in Rupees)	(Rupees Eighty Three Lac Thirty Six Thousand Seven Hundred Sixty Nine Only)				

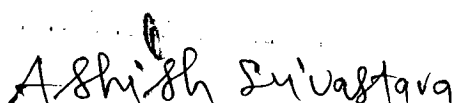
***Maintenance Deposit Rs 50,000/- payable extra as provided in Agreement**

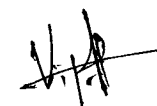
Explanation:

- (i) The Total Price as mentioned above includes the booking amount paid by the allottee to the Promoter towards the Apartment for Residential usage alongwith parking (if applicable);
- (ii) The Total Price as mentioned above includes Taxes (GST and Cess or any other taxes/ fees/ charges/ levies etc. which may be levied, in connection with the development/ construction of the Project(s)) paid/ payable by the Promoter up to the date of handing over the possession, of the Apartment for Residential usage alongwith parking (if applicable) to the allottee(s) and the project to the association of allottees or the competent authority, as the case may be, after obtaining the necessary approvals from competent authority for the purposes of such possession:

Provided that, in case there is any change / modification in the taxes/ charges/ fees/ levies etc., the subsequent amount payable by the allottee to the promoter shall be increased/ decreased based on such change / modification:

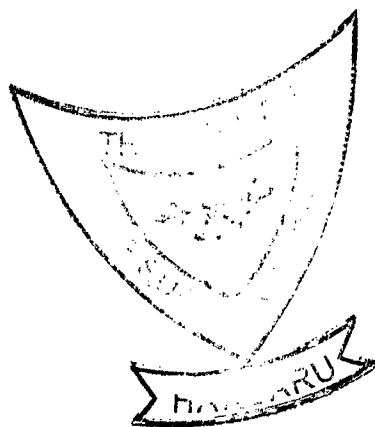
Provided further, if there is any increase in the taxes/ charges/ fees/ levies etc. after the expiry of the scheduled date of completion of the project as per registration with the Authority, which shall include


PROMOTER


ALLOTTEE

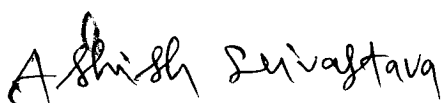

CO-ALLOTTEE

22



the extension of registration, if any, granted to the said project by the Authority, as per the Act, the same shall not be charged from the allottee:

- (iii) The Promoter shall periodically intimate in writing to the Allottee, the amount payable as stated in (i) above and the Allottee shall make payment demanded by the Promoter within the time and in the manner specified therein. In addition, the Promoter shall provide to the Allottee(s) the details of the taxes/ fees/ charges/ levies etc. paid or demanded along with the acts/ rules/ notifications together with dates from which such taxes/ fees/ charges/ levies etc. have been imposed or become effective;
 - (iv) The Total Price of Apartment for Residential usage alongwith parking (if applicable) includes recovery of price of land, development/ construction of not only of the Apartment but also of the Common Areas (if applicable), internal development charges, infrastructure augmentation charges, external development charges, taxes/ fees/ levies etc., cost of providing electric wiring, electrical connectivity to the apartment, lift, water line and plumbing, finishing with paint, marbles, tiles, doors, windows, fire detection and firefighting equipment in the common areas, etc. and includes cost for providing all other facilities and amenities forming part of Common Areas in the Project and specifications to be provided within the Apartment for Residential usage alongwith Car Parking (if applicable) in the Project.
- 1.3 The Total Price is escalation-free, save and except increases which the Allottee hereby agrees to pay, due to increase on account of development charges payable to the competent authority and/ or any other increase in charges which may be levied or imposed by the competent authority from time to time. The Promoter undertakes and agrees that while raising a demand on the Allottee for increase in development charges, cost/ charges/ fees/ levies etc. imposed by the competent authorities, the Promoter shall enclose the said notification/ order/ rule/ regulation to that effect along with the demand letter being issued to the Allottee, which shall only be applicable on subsequent payments. Provided that if there is any new imposition or increase of any development charges after the expiry of the scheduled date of completion of the project as per registration with the Authority, which shall include the extension of registration, if any, granted to the said project by the Authority, as per the Act, the same shall not be charged from the allottee.
- 1.4 The Allottee(s) shall make the payment as per the payment plan set out in **Schedule F ("Payment Plan")**.
- 1.5 The Promoter may allow, in its sole discretion, a rebate for early payments of installments payable by the Allottee by discounting such early payments @Nil% per annum for the period by which the respective installment has been preponed. The provision for allowing rebate and such rate of rebate shall not be subject to any revision/ withdrawal, once granted to an Allottee by the Promoter unless agreed upon by the allottee(s).
- 1.6 It is agreed that the Promoter shall not make any additions and alterations in the sanctioned building plans and specifications and the nature of fixtures, fittings and amenities described herein at **Schedule 'G'** and **Schedule 'H'** (which shall be in conformity with the advertisement, prospectus etc., on the basis of which sale is effected) in respect of the apartment or building, as the case may be, without the previous written consent of the Allottee as per the provisions of the Act and Rules made thereunder or as per approvals/instructions/ guidelines of the competent authorities. Provided that, the Promoter may make such minor additions or alterations as may be required by the Allottee, or such minor changes or alterations as per the provisions of the Act and Rules made thereunder or as per approvals/ instructions/ guidelines of the competent authorities.
- 1.7 The Promoter shall confirm the carpet area that has been allotted to the Allottee after the construction of the Building/ Apartment, as the case may be, is complete and the occupation certificate/ part occupation (as the case may be) is granted by the competent authority, by furnishing details of the changes, if any, in the carpet area. The total price payable for the carpet area shall be recalculated upon confirmation by the Promoter. If there is reduction in the carpet area then the Promoter shall refund the excess money paid by Allottee within 90 days with annual interest at the rate prescribed in the Rules, from the date when such an excess amount was paid by the Allottee. If there is any increase in the carpet area, which is not more than five percent of the carpet area of the apartment, allotted to the Allottee, the Promoter may



PROMOTER

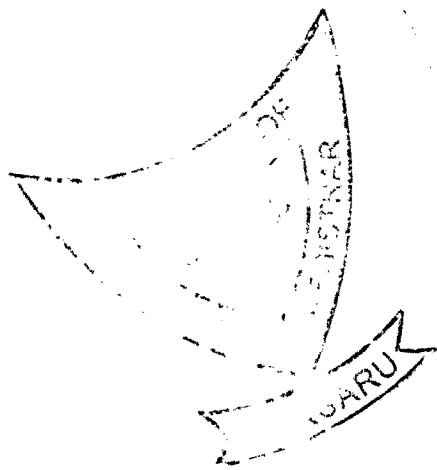


ALLOTTEE



CO-ALLOTTEE

24



demand that from the Allottee as per the next milestone of the Payment Plan as provided in Schedule F. All these monetary adjustments shall be made at the same rate per square feet as agreed in para 1.2 and Schedule E of this Agreement.

1.8 Subject to para 9.3 the Promoter agrees and acknowledges, the Allottee shall have the right to the Apartment for Residential alongwith parking (if applicable) as mentioned below:

- (i) The Allottee shall have exclusive ownership of the Apartment for Residential with right to use of Car Parking (if applicable);
- (ii) The Allottee shall also have undivided proportionate share in the Common Areas as provided under Rule 2(1)(f) of Rules, 2017 of the State. The Allottee(s) shall use the Common Areas along with other occupants, maintenance staff etc., without causing any inconvenience or hindrance to them. It is clarified that the promoter shall hand over the common areas to the association of allottees/ competent authorities after duly obtaining the occupation certificate/ part occupation certificate/ part completion/ completion certificate from the competent authority, as the case may be as provided under Rule 2(1)(f) of Rules, 2017 of the State;
- (iii) The Allottee has the right to visit the project site to assess the extent of development of the project and his Apartment for Residential usage.

1.9 It is made clear by the Promoter and the Allottee agrees that the Apartment along with Car Parking shall be treated as a single indivisible unit for all purposes. All terms and conditions mentioned herein, including but not limited to the use, cancellation of allotment, resumption etc. of the Said Apartment shall also apply to the Car Parking.

1.10 Any additional car park space, if required by the Allottee shall, subject to availability, be granted by the Promoter, and charged at the then prevalent rates for allotment of each such car park space.

1.11 The Allottee undertakes to park its vehicles only in the Car Parking, and not anywhere else in Project. The Allottee agrees and confirms that in the event of cancellation, surrender, relinquishment, resumption, re-possession etc., of the Apartment under any of the provisions of this Agreement, the Car Parking Space shall also deemed cancelled, surrendered, relinquished, resumed, as the case may be.

1.12 The Promoter agrees to pay all outstanding payments before transferring the physical possession of the apartment to the Allottees, which it has collected from the Allottees, for the payment of such outstanding (including land cost, ground rent, municipal or other local taxes/ charges/ levies etc., charges for water or electricity, including mortgage loan and interest on mortgages or other encumbrances and such other liabilities payable to competent authorities, banks and financial institutions, which are related to the project). If the Promoter fails to pay all or any of the outstanding(s) collected by it from the Allottees or any liability, mortgage loan and interest thereon before transferring the apartment to the Allottees, the Promoter agrees to be liable, even after the transfer of the property, to pay such outstanding(s) and penal charges, if any, to the authority or person to whom they are payable and be liable for the cost of any legal proceedings which may be taken therefor by such authority or person.

1.13 The Allottee has paid a sum of **Rs. 7,20,000/- (Rupees Seven Lac Twenty Thousand Only)** as Booking Amount being part payment towards the Total Price of the Apartment for Residential usage alongwith parking (if applicable) at the time of application; the receipt of which the Promoter hereby acknowledges and the Allottee hereby agrees to pay the remaining price of the Apartment for Residential usage alongwith parking (if applicable) as prescribed in the Payment Plan [Schedule F] as may be demanded by the Promoter within the time and in the manner specified therein:

Provided that if the allottee delays in payment towards any amount which is payable, he shall be liable to pay interest at the rate prescribed in the Rule 15 of Rules, 2017.

Ashish Suvasana

PROMOTER

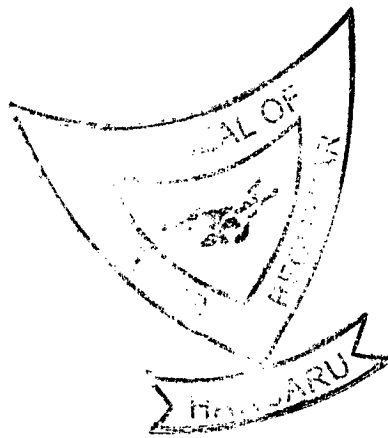
V.H.

ALLOTTEE

Harman

CO-ALLOTTEE

26



2. MODE OF PAYMENT:

Subject to the terms of the Agreement and the Promoter abiding by the construction development milestones, the Allottee shall make all payments, on written demand by the Promoter, within the stipulated time as mentioned in the Payment Plan [Schedule F] through A/c Payee cheque/ demand draft/ bankers cheque or online payment (as applicable) in favour of 'ATS Realworth Private Limited' payable at Noida.

3. COMPLIANCE OF LAWS RELATING TO REMITTANCES:

- 3.1 The Allottee, if residing outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act, 1934 and the Rules and Regulations made thereunder or any other statutory amendment(s) modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/ sale/ transfer of immovable properties in India etc. and provide the Promoter with such permission, approvals which would enable the Promoter to fulfill its obligations under this Agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or any other statutory enactments or amendments thereof and the Rules and Regulations of the Reserve Bank of India or any other applicable law. The Allottee understands and agrees that in the event of any failure on his/ her part to comply with the applicable guidelines issued by the Reserve Bank of India, he/ she may be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time.
- 3.2 The Promoter accepts no responsibility in regard to matters specified in para 3.1 above. The Allottee shall keep the Promoter fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Allottee subsequent to the signing of this Agreement, it shall be the sole responsibility of the Allottee to intimate the same in writing to the Promoter immediately and comply with all necessary formalities as specified and under the applicable laws. The Promoter shall not be responsible towards any third party making payment/ remittances on behalf of any Allottee and such third party shall not have any right in the application/ allotment of the said Apartment for Residential usage applied for herein in any way and the Promoter shall be issuing the payment receipts in favour of the Allottee(s) only.

4. ADJUSTMENT/ APPROPRIATION OF PAYMENTS:

The Allottee authorizes the Promoter to adjust/ appropriate all payments made by him/her under any head(s) of dues against lawful outstanding of the allottee against the Apartment for Residential usage alongwith parking (if applicable), if any, in his/ her name and the Allottee undertakes not to object/ demand/ direct the Promoter to adjust his payments in any manner.

5. TIME IS ESSENCE:

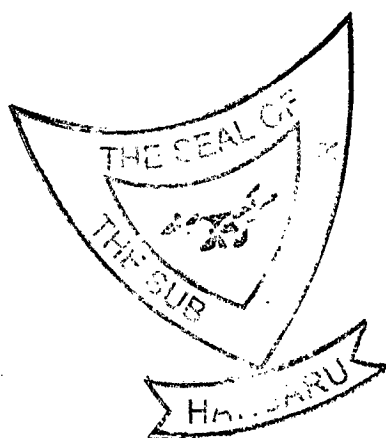
The Promoter shall abide by the time schedule for completing the project as disclosed at the time of registration of the project with the Authority and towards handing over the Apartment for Residential usage alongwith usage rights of parking (if applicable) to the Allottee(s) and the common areas to the association of allottees or the competent authority, as the case may be, as provided under Rule 2(1)(f) of Rules, 2017.

6. CONSTRUCTION/ DEVELOPMENT OF THE PROJECT:

The Allottee has seen the proposed layout plan/ demarcation-cum-zoning/ site plan/ building plan, specifications, amenities, facilities, etc. regarding the project(s) where the said Apartment for

PROMOTERALLOTTEECO-ALLOTTEE

28



Residential usage alongwith parking (if applicable) is located and has accepted the floor site plan, payment plan and the specifications, amenities, facilities. [annexed along with this Agreement] which have been approved by the competent authority, as represented by the Promoter.

The Promoter shall develop the Project in accordance with the bye-laws such as Haryana Building Code, 2017, FAR, density norms, provisions prescribed, approved plans, terms and condition of the license allotment as well as registration of RERA, etc. Subject to the terms in this Agreement, the Promoter undertakes to strictly abide by such plans approved by the competent Authorities and shall also strictly abide by the provisions and norms prescribed by the Haryana Apartment Ownership Act, 1983 as amended till date, and shall not have an option to make any variation/ alteration/ modification in such plans, other than in the manner provided under the Act and Rules made thereunder or as per approvals/instructions/ guidelines of the competent authorities, and any breach of this term by the Promoter shall constitute a material breach of the Agreement.

7. POSSESSION OF THE APARTMENT FOR RESIDENTIAL USAGE:

- 7.1 Schedule for possession of the said Apartment for Residential usage** - The Promoter agrees and understands that timely delivery of possession of the Apartment for Residential usage alongwith Car Parking (if applicable) to the Allottee(s) and the common areas to the association of allottees or the competent authority, as the case may be, as provided under Rule 2(1)(f) of Rules, 2017, is the essence of the Agreement.

The Promoter assures to hand over possession of the Apartment for Residential usage alongwith Car Parking (if applicable), on or before **30th June 2023**, unless there is delay due to "*force majeure*", Court orders, Government policy/ guidelines, decisions affecting the regular development of the real estate project. If, the completion of the Project is delayed due to the above conditions, then the Allottee agrees that the Promoter shall be entitled to the extension of time for delivery of possession of the Apartment for Residential usage.

The Allottee agrees and confirms that, in the event it becomes impossible for the Promoter to implement the project due to Force Majeure and above mentioned conditions, then this allotment shall stand terminated and the Promoter shall refund to the Allottee, the entire amount received by the Promoter from the allottee within ninety days. The promoter shall intimate the allottee about such termination at least thirty (30) days prior to such termination. After refund of the money paid by the Allottee, the Allottee agrees that he/ she shall not have any rights, claims etc. against the Promoter and that the Promoter shall be released and discharged from all its obligations and liabilities under this Agreement.

- 7.2 Procedure for taking possession of Apartment** - The Promoter, upon obtaining the occupation certificate or part thereof of building blocks in respect of Group Housing alongwith parking (if applicable) shall offer in writing the possession of the apartment within three months from the date of above approval, to the Allottee(s) as per terms of this Agreement.

The Promoter agrees and undertakes to indemnify the Allottee in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Promoter. The promoter shall provide copy (on demand) of occupation certificate or part thereof in respect of Group Housing alongwith parking (if applicable) at the time of conveyance of the same. The Allottee(s), after taking possession, agree(s) to pay the maintenance charges and holding charges as determined by the Promoter/ association of allottees/ competent authority, as the case may be.

Ashish Srivastava

PROMOTER

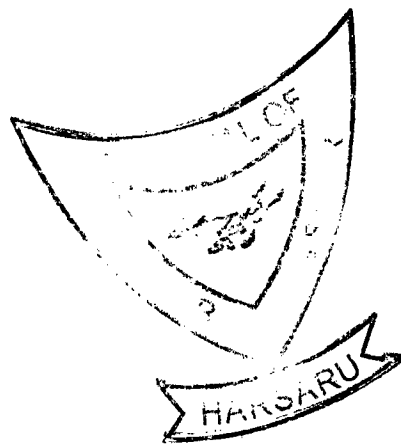
VAP

ALLOTTEE

Ugand

CO-ALLOTTEE

30



- 7.3 Failure of Allottee to take Possession of Apartment for Residential usage** - Upon receiving a written intimation from the Promoter as per para 7.2, the Allottee shall take possession of the Apartment for Residential usage from the Promoter by executing necessary indemnities, undertakings and such other documentation as prescribed in this Agreement, and the Promoter shall give possession of the Apartment for Residential usage to the allottee as per terms and condition of the agreement.

In case the Allottee fails to comply with the essential documentation, undertaking, etc. or fails to take possession within the time provided in para 7.2, such Allottee shall continue to be liable to pay maintenance charges and holding charges as specified in para 7.2.

- 7.4 Possession by the Allottee** - After obtaining the occupation certificate of the building blocks in respect of Group Housing colony and handing over the physical possession of the Apartment for Residential usage alongwith parking for usage (if applicable) to the Allottee(s), it shall be the responsibility of the Promoter to hand over the necessary documents and plans, and common areas to the association of allottees or the competent authority, as the case may be as provided under Rule 2(1)(f) of Rules, 2017.

- 7.5 Cancellation by Allottee** – The Allottee shall have the right to cancel/ withdraw his allotment in the Project as provided in the Act:

Provided that where the allottee proposes to cancel/ withdraw from the project without any fault of the promoter, the promoter herein is entitled to forfeit the booking amount paid for the allotment and interest component on delayed payment (payable by the customer for breach of agreement and non- payment of any due payable to the promoter). The rate of interest payable by the allottee to the promoter shall be the State Bank of India highest marginal cost of lending rate plus two percent. The balance amount of money paid by the allottee shall be returned by the promoter to the allottee within ninety (90) days of such cancellation.

- 7.6 Compensation** – The Promoter shall compensate the Allottee in case of any loss caused to him due to defective title of the land, on which the project is being developed or has been developed, in the manner as provided under the Act and the claim for interest and compensation under this provision shall not be barred by limitation provided under any law for the time being in force.

Except for occurrence of a “*force majeure*”, Court orders, Government policy/ guidelines, decisions, if the promoter fails to complete or is unable to give possession of the Apartment for Residential usage alongwith parking (if applicable).

- (i) In accordance with the terms of this Agreement, duly completed by the date specified in para 7.1; or
- (ii) due to discontinuance of his business as a developer on account of suspension or revocation of the registration under the Act; or for any other reason; the Promoter; shall be liable, on demand to the allottees, in case the Allottee wishes to withdraw from the Project, without prejudice to any other remedy available, to return the total amount received by him in respect of the Apartment for Residential usage, with interest at the rate prescribed in the Rules including compensation in the manner as provided under the Act within ninety days of it becoming due.

Provided that if the Allottee does not intend to withdraw from the Project, the Promoter shall pay the Allottee interest at the rate prescribed in the Rules for every month of delay, till the offer of the possession of the Apartment for Residential usage, which shall be paid by the promoter to the allottee within ninety days of it becoming due.

8 REPRESENTATIONS AND WARRANTIES OF THE PROMOTER:

The Promoter hereby represents and warrants to the Allottee as follows:

- (i) The Owner has absolute, clear and marketable title with respect to the said Land; the Promoter has requisite rights to carry out development upon the said Land and absolute, actual, physical and legal possession of the said Land for the Project;

Ashish Srivastava

PROMOTER

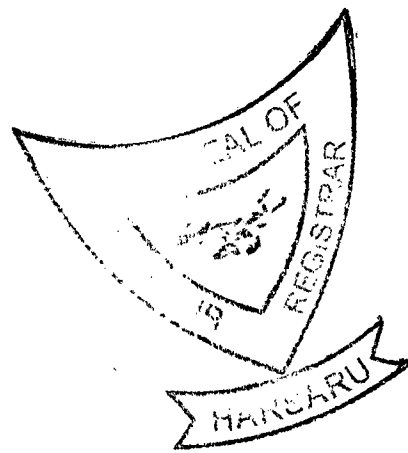
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

32



- (ii) The Promoter has lawful rights and requisite approvals from the competent Authorities to carry out development of the Project;
- (iii) There are no encumbrances upon the said Land or the Project except as disclosed by the Promoter during registration of the Project under the Act;
- (iv) There are no litigations pending before any Court of law or Authority with respect to the said Land, Project or the Apartment except as disclosed by the Promoter during registration of the Project under the Act;
- (v) All approvals, licenses, sanctions and permission issued by the competent authorities with respect to the Project(s) or phase(s), as the case may be, as well as for the Apartment for Residential usage being sold to the allottee(s) are valid and subsisting and have been obtained by following due process of law.
Further, the Promoter has been and shall, at all times, remain to be in compliance with all applicable laws in relation to the Project(s) or phase(s), as the case may be, as well as for the Apartment for Residential usage and for common areas as provided under Rule 2(1)(f) of Rules, 2017;
- (vi) The Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee created herein, may prejudicially be affected;
- (vii) The Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the said Land, including the Project and the said Apartment for Residential usage which will, in any manner, affect the rights of Allottee(s) under this Agreement;
- (viii) The Promoter confirms that the Promoter is not restricted in any manner whatsoever from selling the said Apartment for Residential usage to the Allottee(s) in the manner contemplated in this Agreement;
- (ix) At the time of execution of the conveyance deed the Promoter shall handover lawful, vacant, peaceful, physical possession of the Apartment for Residential usage alongwith parking usage (if applicable) to the Allottee(s), common areas to the association of allottees or the competent authority, as the case may be, as provided under Rule 2(1)(f) of Rules, 2017;
- (x) The Schedule Property is not the subject matter of any HUF and that no part thereof is owned by any minor and/ or no minor has any right, title and claim over the Schedule Property;
- (xi) The Promoter has duly paid and shall continue to pay and discharge all governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the said project to the competent Authorities till the offer of possession of apartment has been issued, as per the provisions of the Haryana Development and Regulation of Urban Areas Act, 1975, rules thereof, equipped with all the specifications, amenities, facilities as per the agreed terms and conditions and common areas as provided under Rule 2(1)(f) of Rules, 2017;
- (xii) No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received by or served upon the Promoter in respect of the said Land and/ or the Project.

9 EVENTS OF DEFAULTS AND CONSEQUENCES:

9.1 Subject to the "*force majeure*", Court orders, Government policy/ guidelines, decisions, the Promoter shall be considered under a condition of Default, in the following events:

- (i) Promoter fails to provide ready to move in possession of the developed Apartment for Residential usage alongwith parking (if applicable) to the Allottee within the time period specified in para 7.1 or fails to complete the project within the stipulated time disclosed at

Ashish Srivastava

PROMOTER

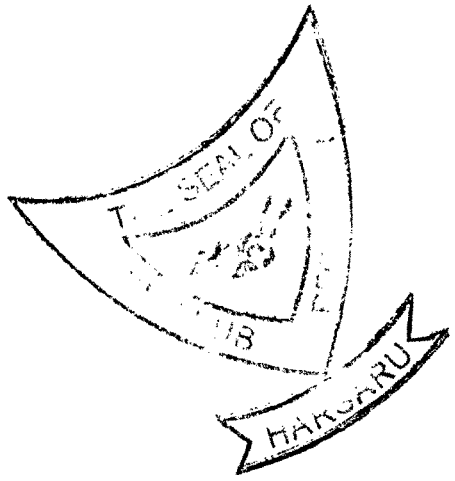


ALLOTTEE



CO-ALLOTTEE

3A



the time of registration of the project with the Authority. For the purpose of this para, 'ready to move in possession' shall mean that the Apartment for Residential usage shall be in a habitable condition which is complete in all respects including the provision of all specifications, amenities and facilities, as agreed to between the parties, and for which occupation certificate or part thereof has been issued by competent authority. However, notwithstanding anything stated herein, the Promoter shall not be responsible towards any delay caused by the relevant authority in granting such completion or occupation certificate or any other approval, and the Promoter shall be required to follow up with the authority on a best effort basis.

- (ii) Discontinuance of the Promoter's business as a developer on account of suspension or revocation of his registration under the provisions of the Act or the rules or regulations made thereunder.

9.2 In case of Default by Promoter under the conditions listed above, Allottee is entitled to the following:

- (i) Stop making further payments to Promoter as demanded by the Promoter. If the Allottee stops making payments, the Promoter shall correct the situation by completing the construction/development milestones and only thereafter the Allottee be required to make the next payment without any interest for the period of such delay; or
- (ii) The Allottee shall have the option of terminating the Agreement in which case the Promoter shall be liable to refund the entire money paid by the Allottee under any head whatsoever towards the purchase of the apartment, along with interest at the rate prescribed in the Rules within ninety (90) days of receiving the termination notice:

Provided that where an Allottee does not intend to withdraw from the project or terminate the Agreement, he shall be paid, by the promoter, interest at the rate prescribed in the Rules, for every month of delay till the handing over of the possession of the Apartment for Residential usage alongwith parking (if applicable), which shall be paid by the promoter to the allottee within ninety days of it becoming due.

9.3 The Allottee shall be considered under a condition of Default, on the occurrence of the following events:

- (i) In case the Allottee fails to make payments for two consecutive demands made by the Promoter as per the Payment Plan annexed hereto, despite having been issued notice in that regard the allottee shall be liable to pay interest to the promoter on the unpaid amount at the rate prescribed in the Rules;
- (ii) In case of Default by Allottee under the condition listed above continues for a period beyond ninety days after notice from the Promoter in this regard, the Promoter may cancel the allotment of the Apartment for Residential usage alongwith parking (if applicable) in favour of the Allottee and refund the money paid to him by the allottee by forfeiting the booking amount paid for the allotment and interest component on delayed payment (payable by the customer for breach of agreement and non-payment of any due payable to the promoter). The rate of interest payable by the allottee to the promoter shall be the State Bank of India highest marginal cost of lending rate plus two percent. The balance amount of money paid by the allottee shall be returned by the promoter to the allottee within ninety days of such cancellation. On such default, the Agreement and any liability of the promoter arising out of the same shall thereupon, stand terminated. Provided that, the promoter shall intimate the allottee about such termination at least thirty days prior to such termination.

Ashish Srivastava

PROMOTER

V. H.

ALLOTTEE

H. H.

CO-ALLOTTEE

36



10 CONVEYANCE OF THE SAID APARTMENT:

The promoter, on receipt of total price of Apartment for Residential usage alongwith parking (if applicable), shall execute a conveyance deed in favour of allottee(s) preferably within three months but not later than six months from possession:

Provided that, the apartment is equipped with all the specifications, amenities, facilities as per the agreed terms and conditions and common areas as provided under Rule 2(1)(f) of Rules, 2017. However, in case, the Allottee fails to deposit the stamp duty and or registration charges, other ancillary charges within the period mentioned in the notice, the Allottee authorizes the Promoter to withhold registration of the conveyance deed in his/ her favour till such stamp duty, registration charges, other ancillary charges are paid by the Allottee to the Promoter. However, Allottee will be under the obligation to pay holding charges and maintenance charges from the date of offer of possession.

11 MAINTENANCE OF THE SAID BUILDING / APARTMENT / PROJECT:

- 11.1 The Promoter shall be responsible to provide and maintain essential services in the Project till the taking over of the maintenance of the project by the association of allottees or competent authority, as the case may be, upon the issuance of the occupation certificate/ part thereof, part completion certificate/ completion certificate of the project, as the case may be. The cost of such maintenance along with applicable tax shall be borne by the Allottee on pro- rata basis.

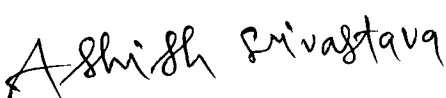
In case, the allottee/ association of allottees fails to take possession of the said essential services as envisaged in the agreement or prevalent laws governing the same, then in such a case, the promoter or the developer has right to recover such amount as spent on maintaining such essential services alongwith applicable tax.

- 11.2 The Allottee agrees to execute a maintenance agreement along with other necessary documents, undertakings etc. in the standard format, with the Promoter / the Association of Allottees / the Maintenance Agency as appointed for maintenance and upkeep of the Project. Execution of the maintenance agreement shall be a condition precedent for handing over possession of Apartment by the Promoter and also for executing the Conveyance Deed of the Apartment.

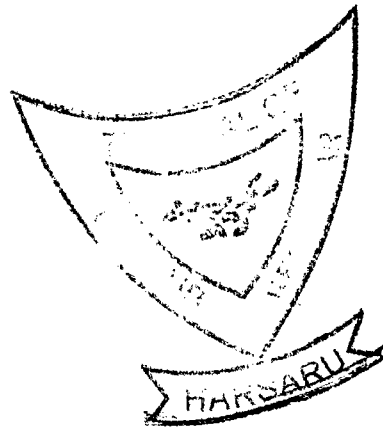
- 11.3 In addition to the Association/ Promoter's/ Maintenance Agency's rights of unrestricted access of all Common Areas and Facilities for providing maintenance services, the Allottee agrees to permit the Promoter or the Maintenance Agency or their authorized personnel / workers to enter into the Apartment or any part thereof, after due notice and during the normal working hours, to inspect the Apartment and / or to carry out any repair work relating to construction / development that may be impacting the Apartment or the adjoining apartments or the Building / the Common Areas. The Allottee agrees and undertakes that either itself or through the Association, it shall not carry out any unauthorized maintenance or usage of common areas.

12 DEFECT LIABILITY:

It is agreed that in case any structural defect or any other defect in workmanship, quality or provision of services or any other obligations of the Promoter as per the agreement for sale relating to such development is brought to the notice of the Promoter within a period of 5 (five) years by the Allottee from the date of handing over possession, it shall be the duty of the Promoter to rectify such defects without further charge, within ninety days, and in the event of Promoter's failure to rectify such defects within such time, the aggrieved Allottees shall be entitled to receive appropriate compensation in the manner as provided under the Act.

PROMOTERALLOTTEECO-ALLOTTEE

38



Provided that, the promoter shall not be liable for any such structural architectural defect induced by the allottee(s), by means of carrying out structural or architectural changes from the original specifications/ design.

13 RIGHT TO ENTER THE APARTMENT FOR REPAIRS AND MAINTENANCE WORKS:

The Promoter/ maintenance agency/ association of allottees/ competent authority shall have rights of access of Common Areas, parking spaces for providing necessary maintenance services and the allottee(s) agrees to permit the association of allottees and or maintenance agency/ competent authority to enter into the Apartment for Residential usage after giving due notice and entering the said premises during the normal working hours, unless the circumstances warrant otherwise, with a view to rectify such defect(s).

14 USAGE:

- 14.1 The Allottee shall use the Apartment only for residential purposes for which it is allotted and in a manner that does not cause nuisance or annoyance to other occupants of the Building / Project. Use of the Apartment shall not be against public policy and/or for any unlawful, illegal or immoral purposes and/or for any temporary or permanent storage of any hazardous, toxic, combustible or inflammable materials and chemicals and/or for any purpose which is likely to cause any damage to any flooring, wall or ceiling of the Apartment and/or to any unit above, below or adjacent to the Apartment and/or anywhere in the Building / Project and/or which in any manner interferes with and/or obstructs the use of the Common Areas.
- 14.2 Use of Basement and Service Areas: The basement(s) and service areas, if any, as located within the '**ATS Grandstand Phase-I**', shall be earmarked for purposes such as parking spaces and services including but not limited to electric sub-station, transformer, DG set rooms, underground water tanks, pump rooms, maintenance and service rooms, firefighting pumps and equipment's etc. and other permitted uses as per sanctioned plans. The Promoter/ Allottee(s) shall not be permitted to use the services areas and the basements in any manner whatsoever, other than those earmarked as parking spaces, and the same shall be reserved for use by the association of allottees formed by the Allottees, maintenance agencies/ competent authority for rendering maintenance services.
- 14.3 The Allottee hereby agrees and confirms to indemnify the Promoter against any penal action and liability, damage, loss, claim, demand etc. due to misuse of the Apartment for which the Allottee of the Apartment shall be solely liable and responsible, without any recourse to the Promoter.
- 14.4 If the Allottee uses or permits use of the Apartment for any purpose other than as stated herein or otherwise for any illegal or unlawful purpose, the Promoter shall be entitled to cancel this Agreement and repossess the Apartment besides pursuing such other remedies as may be available to the Promoter under the Applicable Laws.

15 GENERAL COMPLIANCE WITH RESPECT TO THE APARTMENT:

- 15.1 Subject to para 12 above, the Allottee shall, after taking possession, be solely responsible to maintain the Apartment for Residential usage alongwith parking (if applicable) at his/ her own cost, in good repair and condition and shall not do or suffer to be done anything in or to the Building, or the Apartment for Residential usage alongwith parking (if applicable), or the staircases, lifts, common passages, corridors, circulation areas, atrium or the compound which may be in violation of any laws or rules of any authority or change or alter or make additions to the Apartment for Residential usage alongwith parking (if applicable) and keep the Apartment for Residential usage alongwith parking (if applicable), its walls and partitions, sewers, drains, pipe and appurtenances thereto or belonging thereto, in good and tenable repair and maintain the same in a fit and proper condition and ensure that the support, shelter etc. of the Building is not in any way damaged or jeopardized.

Abhishek Suvastava

PROMOTER

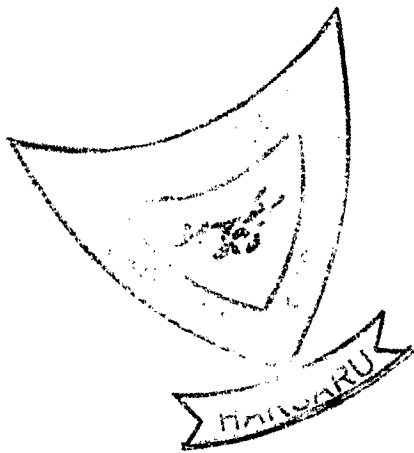
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

70



15.2 The Allottee Association of allottees further undertakes, assures and guarantees that he/she would not put any sign-board / name-plate, neon light, publicity material or advertisement material etc. on the face facade of the Building or anywhere on the exterior of the Project, buildings therein or Common Areas. The Allottees shall also not change the colour scheme of the outer walls or painting of the exterior side of the windows or carry out any change in the exterior elevation or design. Further the Allottee/ Association of allottees shall not store any hazardous or combustible goods in the Apartment for Residential usage and parking (if applicable) or place any heavy material in the common passages or staircase of the Building. The promoter allottees/ association of allottees shall ensure that they will not create any hindrance by way of locking, blocking, parking or any other manner in right of passage or access or common areas which otherwise are available for free access. The Allottee/ Association of allottees shall also not remove any wall, including the outer and load bearing wall of the Apartment for Residential usage and parking (if applicable).

15.3 The Allottee/ Association of allottees shall plan and distribute its electrical load in conformity with the electrical systems installed by the Promoter and thereafter the association of allottees and/ or maintenance agency appointed by association of allottees/ competent authority. The Allottee shall be responsible for any loss or damages arising out of breach of any of the aforesaid conditions.

16 COMPLIANCE OF LAWS, NOTIFICATIONS ETC. BY PARTIES:

The Parties are entering into this Agreement for the allotment of a Apartment for Residential usage alongwith parking (if applicable) with the full knowledge of all laws, rules, regulations, notifications applicable in the State and related to the project.

17 ADDITIONAL CONSTRUCTIONS:

The Promoter undertakes that it has no right to make additions or to put up additional structure(s) anywhere in the Project after the building plan, layout plan, sanction plan and specifications, amenities and facilities has been approved by the competent authority(ies) and disclosed, except for guidelines/ permissions/ directions or sanctions by competent authority.

18 MORTGAGE OR CREATION OF CHARGE:

18.1 After the Promoter executes this Agreement he shall not mortgage or create a charge on the Apartment for Residential usage and parking (if applicable) and if any such mortgage or charge is made or created then notwithstanding anything contained in any other law for the time being in force, such mortgage or charge shall not affect the right and interest of the Allottee who has taken or agreed to take such Apartment for Residential usage and parking (if applicable).

18.2 The Allottee may, for the purpose of facilitating the payment of the Total Price obtain financial assistance from banks/financial institution after obtaining prior written permission from the Promoter. Any such arrangement / agreement shall be entered into by the Allottee at his sole cost, expense, liability, risk and consequences. In the event of obtaining any financial assistance and/or housing loan from any bank/financial institution, the Promoter may issue the permission / NOC as may be required by the banks / financial institution subject however, that the Promoter shall by no means assume any liability and/or responsibility for any such loan and/or financial assistance which the Allottee may obtain from such bank/ financial institution. The Allottee shall keep the Promoter indemnified from all costs, expenses, injuries, damages etc. which the Promoter may suffer for any breach / default that may be committed by the Allottee to the third party(ies) / banks/ financial institution. In this regard, the Promoter may at the request of Allottee, enter into a tripartite agreement with the Allottee' banker / financial institution to facilitate the Allottee to obtain the loan from such bank / financial institution for purchase of the Said

Ashish Srivastava

PROMOTER

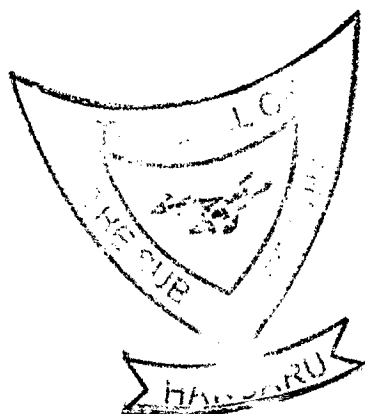
HAP

ALLOTTEE

Haganaf

CO-ALLOTTEE

X2



Apartment. The Allottee hereby agrees that the Promoter shall be entitled to cancel this Allotment Letter at the request of the Allottee's banker / financial institution in the event of any breach of the terms and conditions under the loan agreement / tripartite agreement committed by the Allottee.

- 18.3 The Allottee may obtain finance from any financial institution bank or any other source as stated above, but the Allottee obligation to purchase the Apartment and pay the amounts payable pursuant to this Agreement is not to be contingent on the Allottee's ability or competency to obtain such financing and the Allottee will remain bound under this Agreement whether or not the Allottee has been able to obtain financing for the purchase of the Apartment.

19 APARTMENT OWNERSHIP ACT:

The Promoter has assured the Allottees that the project in its entirety is in accordance with the provisions of the relevant Acts, Rules and Regulations/ bye laws, instructions/ guidelines and decisions of competent authority prevalent in the State. The Promoter hereby is showing the detail of various compliance of above as applicable:

Details of approvals/ compliances to be provided:-

- (A) Pollution Certificate from HARYANA STATE POLLUTION CONTROL BOARD, C-11, Sector-6, Panchkula, No. HSPCB/Consent/: 313116316GUSOCTE3284916 dt 29-Oct-16.
- (B) NOC from Forest Department, Deputy Commissioner Gurugram: 4240/SK2 dated 27 Dec 13.
- (C) Approval of building Plans of Group Housing from Directorate of Town and Country Planning, Haryana, SCO 71-75, Sector 17, Chandigarh Memo No ZP-938/AD(RA)/2014/10816 dt 26-May-14
- (D) EC- State Environment Impact Assessment Authority Haryana Bay No 55-58, Prayatan Bhawan, Sector 2 Panchkula No SEIAA/HR/2014/744 dt 29 May 14.
- (E) Fire Fighting Scheme Approval from Commissioner Municipal Gurugram FA/2014/56287 dt 27 Nov 14
- (F) Fresh Water Assurance from Superintending Engineer, HUDA Circle - I (Gurugram) dt 29 Nov 13.
- (G) NOC for HEIGHT CLEARANCE ONLY from Airport Authority of India AAI/NOC/2017/428/2736-40 dt 18 Sep 13.
- (H) APPROVED SITE PLAN Plan D.T.P. (HQ), Member Secretary. B.P.A.C, S.T.P (G) Member B.P.A.C, CPT (Hr), Chairman B.P.A.C.

20 INDEMNITY

The Allottee undertakes to indemnify and keep the Promoter, and their officers / employees jointly and severally fully indemnified and hold harmless from and against any actions, suits, claims, proceedings, damages, liabilities, losses, expenses or costs ("Claims") faced, suffered, inflicted or incurred by the Promoter, other occupants as consequence of breach of any of the representations, warranties covenants or provisions as mentioned herein. It is agreed that the Allottee shall be responsible for the failure to comply with the obligations herein or for the occurrence of any hazard within the Apartment due to the Allottee's willful misconduct and / or negligence. In such an event, the Allottee shall keep and hold the Promoter fully indemnified for the quantum of loss, penalty caused or borne by the Promoter, claims or demands raised on the Promoter due to such willful misconduct and / or negligence on the part of the Allottee.

Ashish Srivastava

PROMOTER

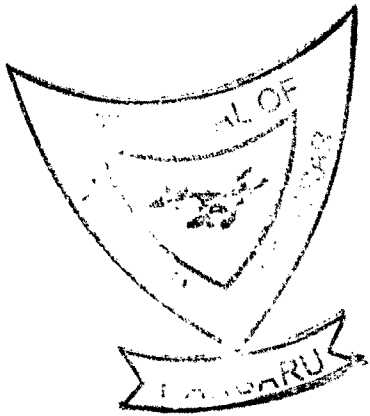
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

XX



21 BINDING EFFECT:

By just forwarding this Agreement to the Allottee by the Promoter, does not create a binding obligation on the part of the Promoter or the Allottee until, firstly, the Allottee signs and delivers this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan within 30 (thirty) days from the date of receipt by the Allottee. Secondly, the allottee and the promoter have an obligation to execute the agreement and also register the said agreement as per the provision of the relevant Act of the State.

If the Allottee(s) fails to execute and deliver to the Promoter, this Agreement within 30 (thirty) days from the date of its receipt by the Allottee and further execute the said agreement and register the said agreement, as per intimation by the Promoter, then the Promoter shall serve a notice to the Allottee for rectifying the default, which if not rectified within sixty days from the date of its receipt by the Allottee, application of the Allottee shall be treated as cancelled and all sums deposited by the Allottee in connection therewith including the booking amount shall be returned to the Allottee without any interest or compensation whatsoever. If, however, after giving an fair opportunity to the allottee to get this agreement executed, the allottee does not come forward or is incapable of executing the same, then in such a case, the promoter has an option to forfeit the booking amount.

22 ENTIRE AGREEMENT:

This Agreement, along with its schedules, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the said Apartment for Residential usage and parking (if applicable).

23 RIGHT TO AMEND:

This Agreement may only be amended through written consent of the Parties concerned in said agreement.

24 PROVISIONS OF THIS AGREEMENT APPLICABLE ON ALLOTTEE(S) / SUBSEQUENT ALLOTTEE(S):

It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising hereunder in respect of the Apartment for Residential usage and parking (if applicable) and the Project shall equally be applicable to and enforceable against and by any subsequent Allottee(s) of the Apartment for Residential usage and parking (if applicable) in case of a transfer, as the said obligations go along with the Apartment for Residential usage and parking (if applicable) for all intents and purposes.

25 WAIVER NOT A LIMITATION TO ENFORCE:

- 25.1 The Promoter may, at its sole option and discretion, without prejudice to its rights as set out in this Agreement, waive the breach by the Allottee(s) in not making payments as per the Payment Plan [Schedule F] including waiving the payment of interest for delayed payment. It is made clear and so agreed by the Allottee(s) that exercise of discretion by the Promoter in the case of one Allottee shall not be construed to be a precedent and /or binding on the Promoter to exercise such discretion in the case of other Allottees.

Ashish Srivastava

PROMOTER

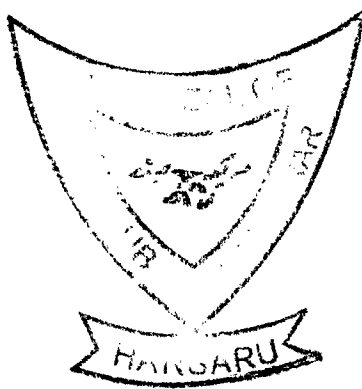
V. J. P.

ALLOTTEE

H. J. P.

CO-ALLOTTEE

A6



25.2 Failure on the part of the Parties to enforce at any time or for any period of time, the provisions hereof shall not be construed to be a waiver of any provisions or of the right thereafter to enforce each and every provision.

26 SEVERABILITY:

If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made thereunder or under other applicable laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement and to the extent necessary to conform to Act or the Rules and Regulations made thereunder or the applicable law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.

27 METHOD OF CALCULATION OF PROPORTIONATE SHARE WHEREVER REFERRED TO IN THE AGREEMENT:

Wherever in this Agreement, it is stipulated that the Allottee has to make any payment, in common with other Allottee(s) in Project, the same shall be the proportion which the area/ carpet area of the Apartment for Residential usage and parking (if applicable) bears to the total area/ carpet area of all the Apartments in the Project.

28 FURTHER ASSURANCES:

Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in additions to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

29 PLACE OF EXECUTION:

The execution of this Agreement shall be complete only upon its execution by the Promoter through its authorized signatory at the Promoter's Office, or at some other place, which may be mutually agreed between the Promoter and the Allottee, in **Gurugram** after the Agreement is duly executed by the Allottee and the Promoter or simultaneously with the execution, the said Agreement shall be registered as per provisions of the relevant State Act at Gurugram. Hence this Agreement shall be deemed to have been executed at Gurugram.

30 NOTICES:

That all notices to be served on the Allottee and the Promoter as contemplated by this Agreement shall be deemed to have been duly served if sent to the Allottee or the Promoter by Registered Post at their respective addresses specified below:

Mr. Vijyant Agarwal S/o Mr. Braham Prakash Agarwal

&

Mrs. Vineeta Agarwal W/o Mr. Vijyant Agarwal

**R/o House No.-07, Type-05, Netaji Subhas Institute of Technology,
Sector-03, Dwarka, New Delhi-110078,**

M/s ATS Realworth Private Limited

ATS Tower, Plot No.16, Sector-135, Noida, Gautam Buddha Nagar, UP

Ashish Suvastava
PROMOTER

[Signature]
ALLOTTEE

[Signature]
CO-ALLOTTEE

48



It shall be the duty of the Allottee and the Promoter to inform each other of any change in address subsequent to the execution of this Agreement in the above address by Registered Post failing which all communications and letters posted at the above address shall be deemed to have been received by the promoter or the Allottee, as the case may be.

31 JOINT ALLOTTEES:

That in case there are Joint Allottees, all communications shall be sent by the Promoter to the Allottee whose name appears first and at the address given by him/her which shall for all intents and purposes be considered as properly served on all the Allottees.

32 SAVINGS:

Any application letter, allotment letter, agreement, or any other document signed by the allottee, in respect of the apartment or building, as the case may be, prior to the execution and registration of this Agreement for Sale for such apartment or building, as the case may be, shall not be construed to limit the rights and interests of the allottee under the Agreement for Sale or under the Act or the rules or the regulations made thereunder.

33 GOVERNING LAW:

That the rights and obligations of the parties under or arising out of this Agreement shall be construed and enforced in accordance with the Act and the Rules and Regulations made thereunder including other applicable laws prevalent in the State for the time being in force.

34 DISPUTE RESOLUTION:

All or any disputes arising out or touching upon or in relation to the terms and conditions of this Agreement, including the interpretation and validity of the terms thereof and the respective rights and obligations of the Parties, shall be settled amicably by mutual discussion, failing which the same shall be settled through the adjudicating officer appointed under the Act.

Ashish Srivastava

PROMOTER

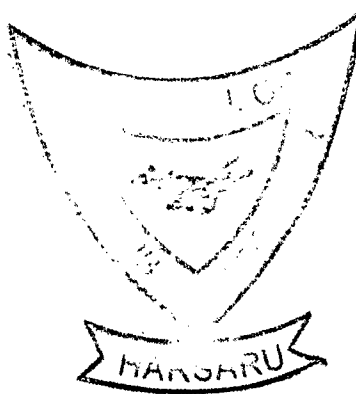
VJP

ALLOTTEE

Agarwal

CO-ALLOTTEE

50



51

IN WITNESS WHEREOF parties hereinabove named have set their respective hands and signed this Agreement for Sale at Gurugram in the presence of attesting witness, signing as such on the day first above written.

SIGNED AND DELIVERED BY THE WITHIN NAMED:

Allottee: (including joint buyers)

(1) Signature [Signature]

Name _____

Address _____

Photo

(2) Signature [Signature]

Name _____

Address _____

Photo

SIGNED AND DELIVERED BY THE WITHIN NAMED:

Promoter:

Signature (Authorised Signatory) Ashish Srivastava

Name : _____

Address _____

At _____ on _____ in the presence of:

WITNESSES:

1. Signature [Signature]

Name Yogesh Kumar

Address Advocate

2. Signature [Signature]

Name Laxman Kumar Slokamal

Address 33 H.NO 539

Gurgaon

Drafted By

[Signature]
Yogesh Kumar
Advocate

Ashish Srivastava

PROMOTER

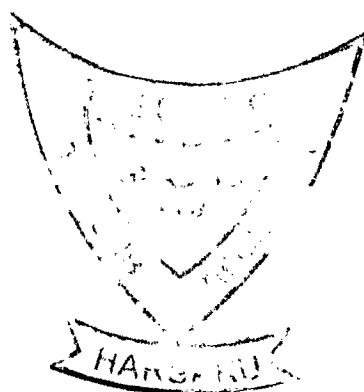
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

52



SCHEDULE 'A'

DESCRIPTION OF THE SUBJECT LANDS

Village Gopalpur, Tehsil & District Gurugram, Haryana

Village	Rect No.	Killa No.	Total Area (K-M)
Gopalpur	47	21/1	1-7
	46	25/3	5-8
	49	3	7-8
		4/1	4-0
		4/2	1-0
	48	10/1	4-0
		01/2	3-8
		10/2	1-1
		1/3	2-12
	47	21/2	0-10
	48	1/1	1-8
	49	5/3	2-0
	46	21	8-0
		22/1/1	5-10
	46	18/1	7-8
		23/2/1	7-0
		24/1	0-6
		24/2	7-5
		25/1	0-6
	46	23/2/2	0-8
		24/3	0-9
		25/4	0-7
		25/2	3-19
		19/1	2-12
		12/2	2-8
		13/1	0-6
		13/2	5-18
		11/2	0-13
		12/1/2	0-9
		19/2	5-8
		Total	92-14 or 11.5875 acres.

Ashish Srivastava

PROMOTER

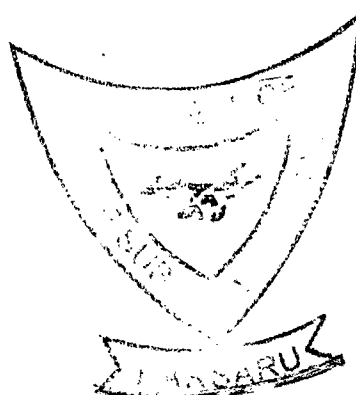


ALLOTTEE



CO-ALLOTTEE

SA



SCHEDULE 'B'
DESCRIPTION OF APARTMENT AND PARKING

Apartment No.	3051
Tower No.	03
Floor	05 th
Super Area approximately (in square feet)	1550
Carpet Area approximately (in square feet)	1011
Number of Parking	1(One)

Ashish Subastava

PROMOTER

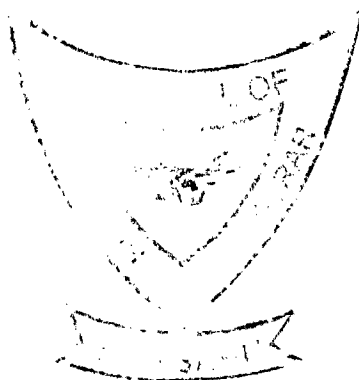
V. S. D.

ALLOTTEE

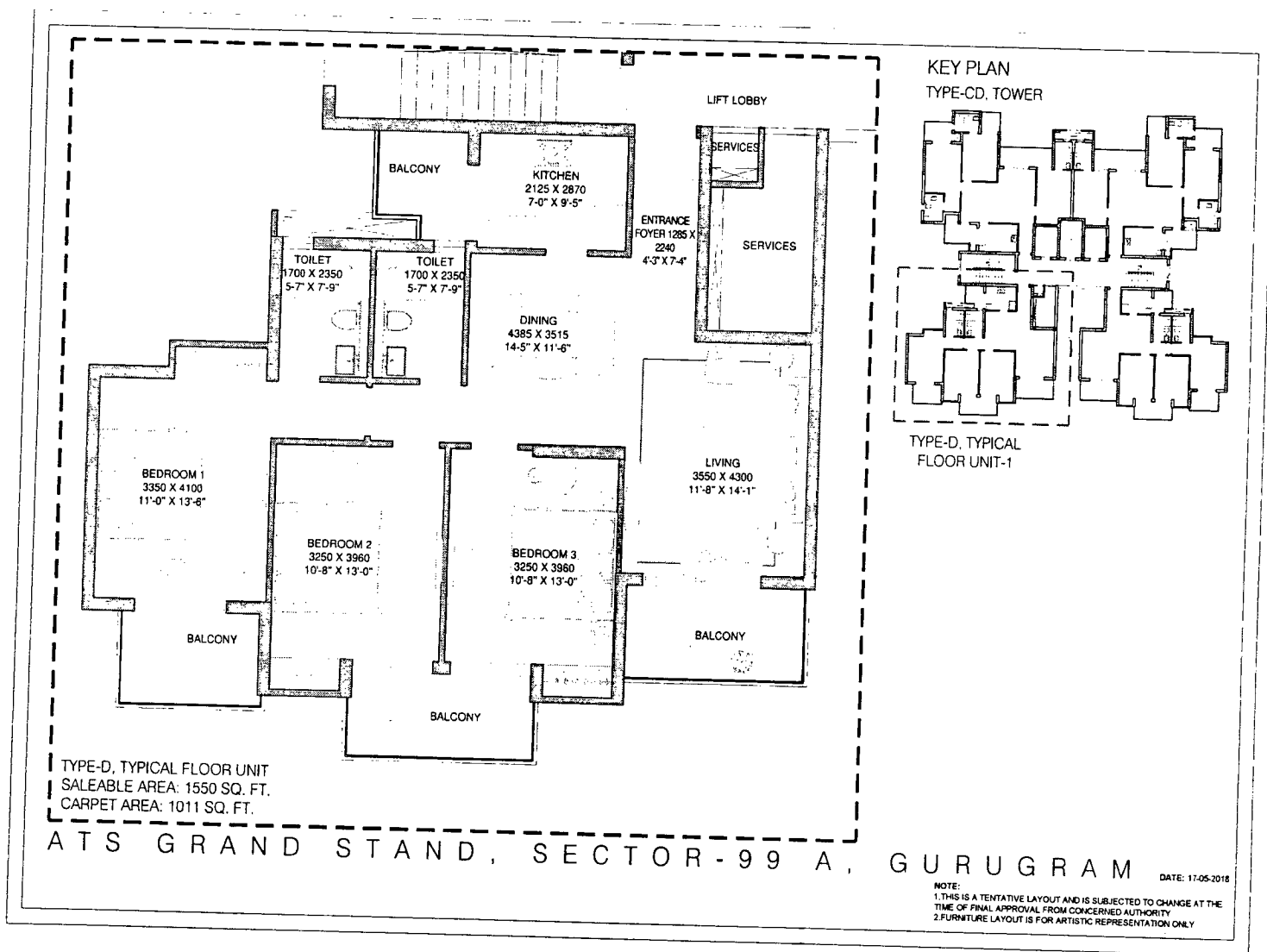
M. J. S.

CO-ALLOTTEE

56



SCHEDULE 'C' **FLOOR PLAN OF THE APARTMENT**



Ashish Swastana

PROMOTER

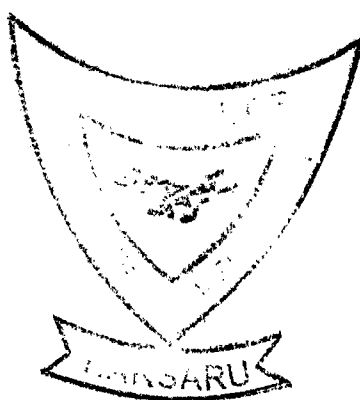
Vijay

ALLOTTEE

Hazim

CO-ALLOTTEE

58



SCHEDULE 'D'
Additional Disclosures:

ADDITIONAL DISCLOSURES FOR PROPOSED CHANGES TO LAYOUT

1. That at present we have land parcel admeasuring 11.5875 acres (approximately) situated at village Gopalpur, Sector-99A, Tehsil and District Gurugram, Haryana for our project "ATS Grandstand Phase-I" (hereinafter referred to as **Project Land**).
2. That as on date Project Layout Map is approved for Project Land admeasuring 11.5875 acres (approximately) by Director Town and Country Planning, Haryana (DTCP).
3. That it is hereby stated that in future, we shall be adding an additional land parcel ad-measuring 1.08125 acres (hereinafter after referred to as **Additional Land**) situated in Village; Gopalpur, Sector-99A, Tehsil and District Gurugram, Haryana.
4. That this Additional Land ad-measuring 1.08125 acres, is contiguous to Project Land ad-measuring 11.5875 acres (approx.) situated in Village; Gopalpur, Sector-99A, Tehsil and District Gurugram, Haryana.
5. That once this Additional Land is added with Project Land, we shall be submitting fresh revised Project Layout Plan duly approved by Director Town and Country Planning, Haryana (DTCP).
6. That with submission of approved Revised Layout Plan with Project Lands and Additional Land we shall be consuming the entire available '**TOD FAR**' as per the applicable Law for time being in force.
7. That the Proposed Project Layout Plan with Additional Land is attached herewith for reference.

OTHER DISCLOSURES

1. Common Areas in the Project shall be such areas which are meant for common use, enjoyment and access of the owners of the apartments in the Project and that are specified by the Promoter in the Declaration Deed that may be made by the Promoter under the Haryana Apartment ownership (Promotion of Construction, Ownership & Maintenance) Act, 1983 and Rules framed there under.
2. The reserved open / covered car parking spaces, Dedicated Terraces, Private Gardens in the Project and such common areas and facilities in the Project which are required under the Apartment Ownership Act, other relevant Applicable Laws or Approvals to be meant for use, enjoyment and access of certain apartment owners in the Project to the exclusion of other apartment owners, as may be specifically provided for in the Declaration to be filed by the Promoter shall form part of Limited Common Areas and Facilities.
3. Usage charges shall be levied by Promoter/Maintenance Agency/Third Party operator for the facilities like club, gym, multipurpose hall and other facilities in the club and/or in the Project

Ashish Swastava

PROMOTER

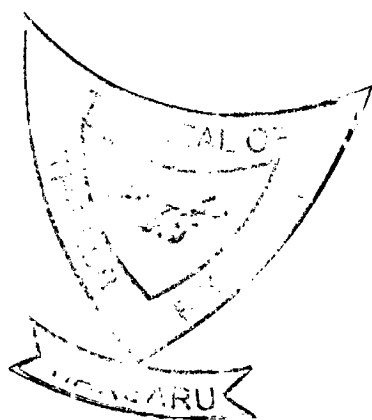
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

60

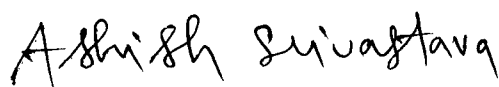
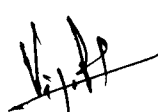


Project: ATS Grandstand Phase-1**SCHEDULE -E
BREAK UP OF TOTAL PRICE****Reg. No.: 27****Name: Mr. Vijyant Agarwal & Mrs. Vineeta Agarwal**

Charge Type	Amount (Rs.)	GST		Total Amount(Rs)
		12% (Post adjustment of abatement)	18%	
Basic Selling Price (Inclusive of 1 Parking)	6699459	803935	-	7503394
Power Backup	100000	-	18000	118000
EDC/IDC Charges	581250	-	104625	685875
Electricity Meter Charges	25000	-	4500	29500
Total Consideration(Rs.)	7405709	803935	127125	8336769

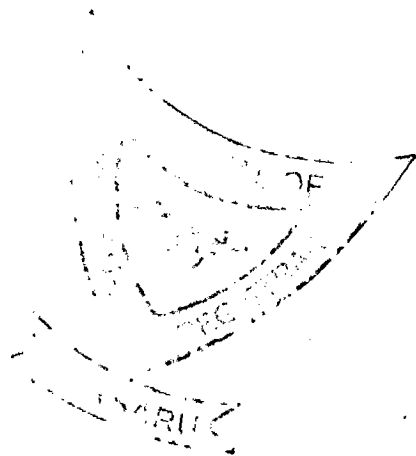
Notes:-

1. The above Calculation does not include Registration cost of the unit. Registration shall be done upon possession as per the rate prevailing at the time of registration.
2. Additional charges as levied by various authorities shall be charged extra and payable on demand.
3. Agreement registration charges as applicable.
4. TDS@1% is applicable as per Income tax act Section 194-IA.
5. Running maintenance charges payable on offer of possession as applicable.
6. Payment for IGL (Piped Natural Gas) will be payable on demand as applicable.
7. Maintenance Deposit of Rs. 50.000/- is payable extra as provided in Agreement.


PROMOTER

ALLOTTEE

CO-ALLOTTEE

62



SCHEDULE -F
PAYMENT PLAN

Project: ATS Grandstand Phase-1
Reg. No.: 27
Name: Mr. Vijyant Agarwal & Mrs. Vineeta Agarwal
Payment Plan- Subvention Plan

S.No.	Stages of Payment							
A	Payment Already Received:							
	Booking Amount	Cheque/Demand draft No.	Date	Bank	Amount	GST		Total
						12% (Post adjustment of abatement)	18%	
		ANDBR52018041800753533	18-04-2018	RTGS	535714	64286	-	600000
		SBIN518114701143	24-04-2018	RTGS	107143	12857	-	120000
	Total Received				642857	77143	-	720000
B	Payment Due: Basic Selling price							
	Due as at 13-05-2018				2371899	284628		2656527
	On 1st Floor Slab				1004919	120590		1125509
	On 50% Structure Completion				1004919	120590		1125509
	On Top Floor Roof Slab				669946	80394		750340
	Total Due				5051683	606202	-	5657885
C	Payable On Offer Of Possession:							
	Basic Selling Price (inclusive of 1 Parking)				1004919	120590	-	1125509
	Electricity Meter Charges				25000	-	4500	29500
	Power Backup				100000	-	18000	118000
	EDC/IDC Charges				581250	-	104625	685875
	Total Due				1711169	120590	127125	1958884
	Grand Total (A+B+C)				7405709	803935	127125	8336769

Notes:-

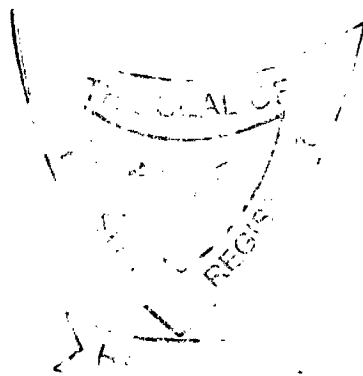
- 1.The above Calculation does not include Registration cost of the unit. Registration shall be done upon possession as per the rate prevailing at the time of registration.
- 2.Additional charges as levied by various authorities shall be charged extra and payable on demand.
- 3.Agreement registration charges as applicable.
- 4.TDS @ 1% is applicable as per Income tax act Section 194-IA.
- 5.Running maintenance charges payable on offer of possession as applicable.
- 6.Payment for IGL (Piped Natural Gas) will be payable on demand as applicable.
- 7.Maintenance Deposit of Rs. 50,000/- is payable extra as provided in Agreement.

Ashish Srivastava
PROMOTER

VAP
ALLOTTEE

Agarwal
CO-ALLOTTEE

64



SCHEDULE 'G'

**ATS-GRAND STAND PHASE-1, SECTOR-99A GURUGRAM UNIT LEVEL
SPECIFICATIONS**

FLOORING	Vitrified Tiles flooring in Living, Dining & lobby; Wooden/ Vitrified Tiles Flooring in Bedrooms; Vitrified Tiles in Kitchen, Utility & Servant Room and Ceramic Tiles in Toilets. Balconies will be in Anti-skid Ceramic Flooring.
DADO	Glazed tiles of required height in Toilets & 600mm height above Kitchen Counter Slab in appropriate Colour & Paint.
PAINTING	Oil Bound Distemper of appropriate colour on interior walls & Ceilings.
KITCHEN	All Kitchen Counters in pre-polished Granite/ Marble Stone, electrical points for Kitchen Chimney & Hob, washing machine & fridge to be provided. Kitchen will be provided with Modular Cabinets of appropriate finish.
DOORS & WINDOWS	Flush doors - Polished/Enamel Painted; Stainless steel/ Brass finished hardware fittings for Main Door & Aluminium powder coated Hardware fitting and locks of branded makes. Door frames & Window Panels of Seasoned Hardwood/Aluminium/ UPVC sections. All hardware in powder coated aluminium. Size and section as per design of the Architect.
PLUMBING	As per standard practice, all internal plumbing in GI/CPVC/Composite.
TOILET	Premium sanitary fixtures, premium Chrome Plated fittings.
ELECTRICAL	All electrical wiring in concealed conduits; provision for adequate light & power points. Telephone & T.V. outlets in Drawing, Dining and all bedroom; moulded modular plastic switches & protective MCB's.
SECURITY & FTTH	Provision for Optical fibre network; Fire prevention, suppression, Detection & alarm system as per fire norms.

Ashish Srivastava

PROMOTER

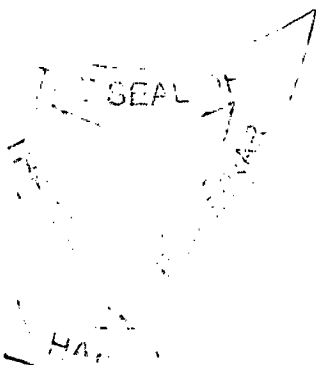
[Signature]

ALLOTTEE

[Signature]

CO-ALLOTTEE

66



SCHEDULE 'H'

ATS-GRAND STAND PHASE-1, SECTOR-99A GURUGRAM PROJECT LEVEL

SPECIFICATIONS

FLOORING	Staircase & Landings to be in Kota/ Terrazzo Flooring.
EXTERIOR	Appropriate finish of Texture Paint of exterior grade water proof paint.
PLUMBING	All external in CI/UPVC. Automated irrigation system.
LIFT	Lifts to be provided for access to all floors.
GENERATORS	Generator to be provided for backup of Emergency facilities i.e. Lifts & Common areas.
CLUBHOUSE & SPORTS FACILITIES	Clubhouse with swimming pool to be provided with his/ her change rooms, well equipped Gym, indoor & Outdoor games areas, Multi- purpose Hall and Jogging track.
SECURITY & FTTH	Video surveillance system, Perimeter Security and Entrance lobby Security with CCTV cameras; Fire prevention, suppression, Detection & alarm system as per fire norms.

Ashish Sivalgarg

PROMOTER

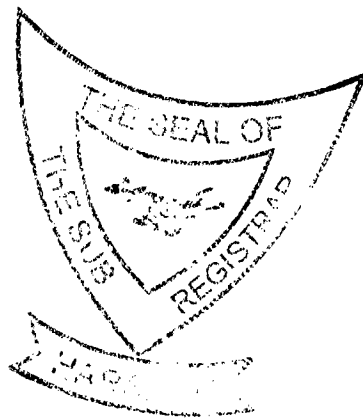
11/11

ALLOTTEE

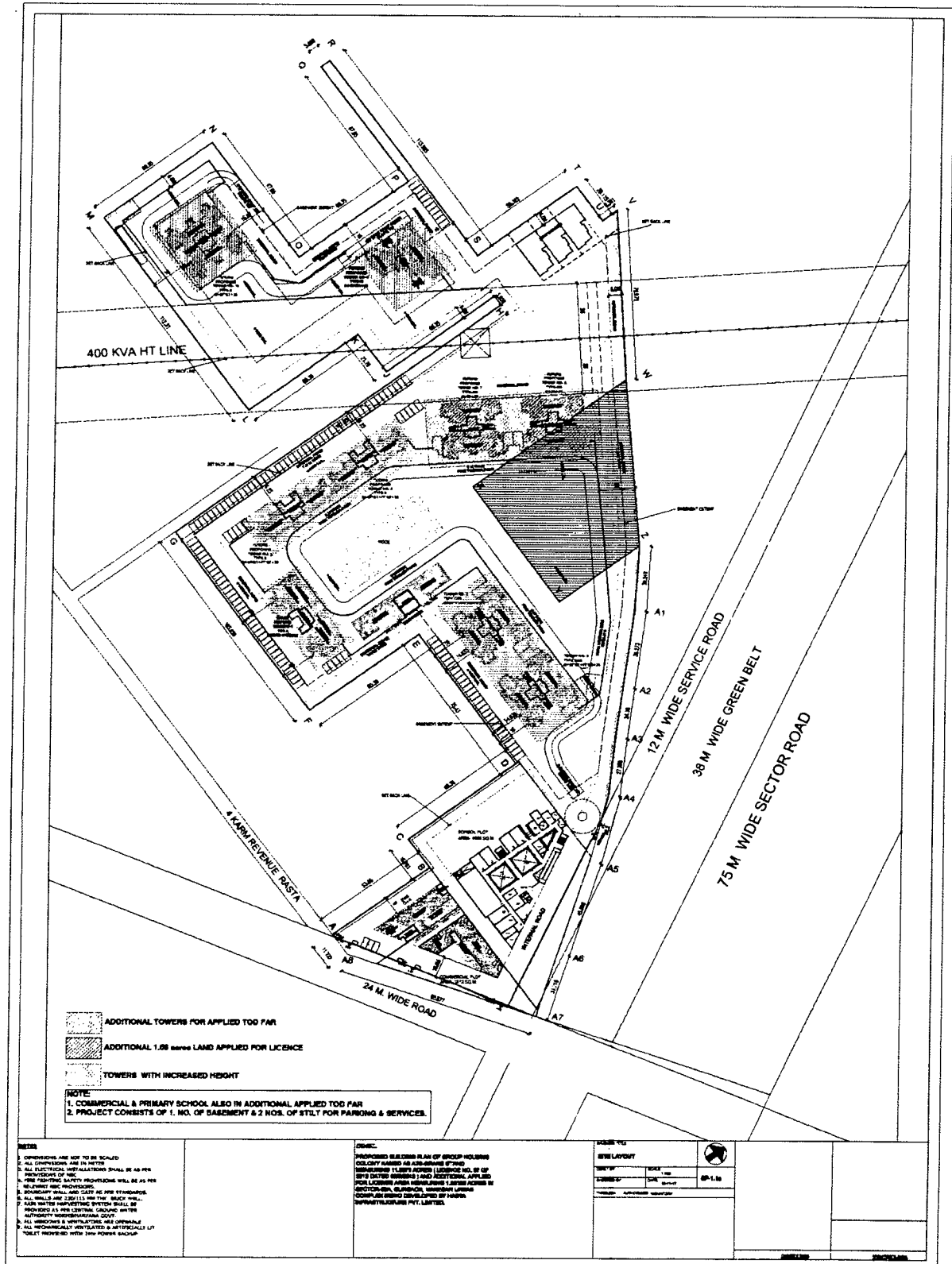
11/11

CO-ALLOTTEE

68



SCHEDULE 'T'
PROJECT PLAN



Ashish Srivastava

PROMOTER

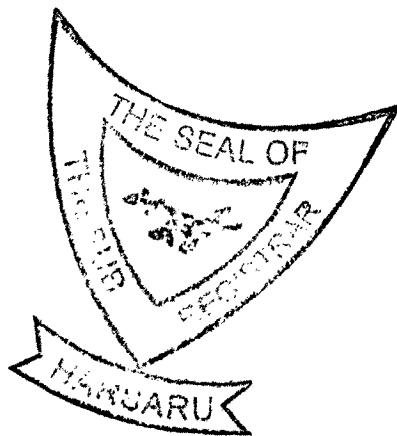
V.A.P.

ALLOTTEE

H. J. J.

CO-ALLOTTEE

70



Dated: October 28th 2018

To,
The Manager
PNB Housing Finance Limited,

Dear Sir

Subject: Issue of 'NO OBJECTION CERTIFICATE' for residential units in "ATS Grandstand" situated at Sector 99A, Gurugram, Haryana as described in Annexure

Kindly refer to your loan application sanction dated September 19th 2018 regarding issue of 'No objection Certificate' in respect of residential units as described in Annexure hereto (hereinafter referred to as "the said properties")

As requested by you, we hereby confirm that Yes Bank Ltd has no Objection in your selling the said Units to the respective customers. Accordingly, we are agreeable to release Yes Bank's lien on the said property. Provided THAT all amounts payable towards the Sale consideration for the said units shall be drawn as:

Escrow A/c No.: 001480200000234

Kindly note that this NOC is being issued in respect of the said Units only and Yes Bank's lien will be fully & finally released after receiving the Balance sale consideration amount against the said Property as mentioned in the Annexure hereto. Yes Bank Ltd. will continue to hold charges on the other residential Plots/Units mortgaged to Yes Bank Ltd. in the Project till clearance of the loan availed by your company for the said project. Further that all previous NOCs issued with regard to the said properties mentioned in the Annexure hereby stands cancelled/revoked.

Kindly further note that a violation of the terms of this NOC shall tantamount to an event of default under the Loan Agreement and shall also render this NOC inoperative and ineffective and anyone dealing with such Units shall also be so dealing at their own risk and peril without any liability or recourse to Yes Bank Ltd and Yes Bank Ltd. shall continue to hold its first and exclusive charge on the said units.

Regards,

Authorized Signatory
ANNEXURE

Project Name & Location: ATS Grandstand, Gurugram

SN	DATE OF BOOKING	CUSTOMER'S NAME	VALUE OF UNIT (Rs.)	PLOT AREA (sqm)	BUILT UP AREA (sqft)	UNIT No.	TOWER	BANK
1	14.03.2018	Mr. Agarwal Viyant	66,99,459/-	144	1550	3051	3	PNBHFL

27

Northern Regional Corporate Office: **YES BANK Limited**, 48, Nyaya Marg, Chanakyapuri, New Delhi 110 021, India.

Tel: +91(11) 6656 9000 Fax: +91(11) 4168 0144

Regd. & Corporate Office: **YES BANK Limited**, Nehru Centre, 9th Floor, Discovery of India, Dr. A.B. Road, Worli, Mumbai 400 018, India.

Tel: +91(22) 6669 9000 Fax: +91(22) 6669 9060

Website: www.yesbank.in Email: communications@yesbank.in CIN - L65190MH2003PLC143249

ATS REALWORTH PVT. LTD.

Corp. Office : ATS Tower, Plot No. 16, Sector-135, Noida
Ph.: +91-120-7111500 **Fax :** +91-120-7111550
E-mail : email@atsgreens.com
website : www.atsgreens.com



MONEY RECEIPT

MR. VIJYANT AGARWAL
HOUSE NO-07, TYPE-05, NETAJI SUBHAS
INSTITUTE OF TECHNOLOGY, SECTOR-03
DWARKA., PIN-110075, DELHI, India.
Mobile No. : 9899308574
PAN No. :AGTPA2826P
GSTIN No. :

Receipt No. : MRGS/00074/18-19
Date : 14/11/2018 00:00:00
Application No. : FAPPGST/00012/17-18
Customer ID : RGGS/00027/17-18
Unit No. : 3051

Co Allottee(s) : Mrs. VINEETA AGARWAL

Vide EFT No. SBIN118305231107 dated : 01-Nov-2018 drawn on : NEFT .

S.No	Description	Amount(INR)	CGST(INR)	SGST/UTGST(INR)	IGST(INR)	Total Amount(INR)
1	Within 60 Days from the date of Booking.UNIT CHARGES	101,770	6,106	6,106		113,982.30
Total Amount (In figure)						113,982.30
Total Amount (In Words)		Rupees One Lac Thirteen Thousand Nine Hundred Eighty Two And Paise Thirty Only				

Naration -

Receipt is valid after realisation of Cheque

Regd. Office :

711/92, Deepali, Nehru Place, New Delhi - 110019

For ATS REALWORTH PVT. LTD.

AUTHORISED SIGNATORY